



CHAPTER cxxviii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Glasgow Corporation Tramways. [4th August 1905.] A.D. 1905.

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Glasgow Corporation (Tramways Consolidation) Order Confirmation Act 1905. Short title.

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SCHEDULE.

GLASGOW CORPORATION (TRAMWAYS
CONSOLIDATION).

Provisional Order to consolidate with amendments the Glasgow Corporation Tramways Acts 1870 to 1904 to authorise the Corporation of the city of Glasgow to construct new tramways and other works and to borrow money for that purpose to authorise the County Council of the county of Renfrew to acquire lands for widening certain bridges in that county and to borrow money for that purpose and for other purposes.

WHEREAS by the Glasgow Corporation Tramways Acts 1870 to 1904 (hereinafter called "the Tramways Acts") the Corporation of the city of Glasgow (hereinafter called "the Corporation" and "the city" respectively) were authorised to construct and maintain tramways (hereinafter called "the tramways") within the city and its neighbourhood and to borrow money for that purpose:

And whereas the Tramways Acts are very numerous and many of their provisions have been superseded by subsequent legislation and ought to be repealed and it would be of public advantage if the provisions of the Tramways Acts so far as it is expedient to retain them were consolidated with certain amendments and additions into one Order:

And whereas the Corporation have constructed the greater part of the tramways:

And whereas it is expedient that the Corporation should be authorised to construct and maintain additional tramways and to execute the other works in this Order described:

And whereas for the purposes of this Order it is expedient that the Corporation should be authorised to raise further money and that the borrowing powers conferred by the Tramways Acts should be increased:

And whereas by the Glasgow Corporation (Tramways &c.) Order 1904 the Corporation were authorised to construct certain tramways in the county of Renfrew and it was enacted by section 13 (subsection 21) of that Order that the Corporation should not construct tramways over the bridges known as MacQuisten Bridge

and Auldhouse Bridge until those bridges had been respectively widened and rebuilt by the county council of the county of Renfrew (hereinafter referred to as "the Renfrew County Council") in accordance with the provisions of the said section : A.D. 1905.

And whereas by the said section provision was made for the widening and the rebuilding respectively of MacQuisten Bridge and Auldhouse Bridge by the Renfrew County Council and the First or Upper District Committee of the said county (hereinafter called "the Renfrew District Committee") and for payment by the Renfrew County Council and the Renfrew District Committee of a proportion of the cost of the widening and the rebuilding of those bridges and it is expedient to authorise the Renfrew County Council and the Renfrew District Committee to acquire land and borrow money for those purposes :

And whereas it is expedient that the other powers in this Order contained should be conferred upon the Corporation :

And whereas plans and sections showing the lines and levels of the tramways and other works by this Order authorised and plans of the lands to be acquired compulsorily and also books of reference to those several plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Order were duly deposited with the principal sheriff-clerks of the counties of Lanark and Renfrew and with the town clerk of the city and the town clerks of the burghs of Kinning Park Partick and Pollokshaws and such plans sections and books of reference are hereinafter respectively referred to as "the deposited plans sections and books of reference" :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited as the Glasgow Corporation (Tramways Consolidation) Order 1905. Short title
and citations.

This Order and the Glasgow Corporation Acts 1855 to 1904 and any other Order or Act passed during the present session of Parliament relating to the Corporation may be cited together as the Glasgow Corporation Acts 1855 to 1905.

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Interpreta-
tion.

2. In this Order the several words and expressions to which meanings are assigned by the Acts incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction and for the purposes of this Order the expressions "the promoters of the undertaking" "the commissioners" and "the company" in the incorporated Acts mean respectively the Corporation :

And in this Order—

"The city" means the city and royal burgh of Glasgow ;

"The Corporation" means the Corporation of the city ;

"The tramways" means any tramway or any part thereof for the time being belonging to leased to worked by or authorised to be constructed by the Corporation under the authority of Parliament ;

"The authorised tramways" means the tramways authorised but the construction of which has not been completed ;

"The intended tramways" means the tramways and works connected therewith by this Order authorised ;

"The tramway undertaking" means the tramways and the property works lands buildings stations machinery plant appliances apparatus rights powers and privileges for the time being belonging to the Corporation or held or used or enjoyed by them for or in relation to or in connection with the tramways ;

"Tramway route" means the route or any part thereof traversed by any single tramway car on the tramways or on any tramways over which the Corporation have or may acquire running powers ;

"Mechanical power" means steam electrical and any other motive power not being animal power ;

"Engine" includes motor ;

"The Renfrew County Council" means the county council of the county of Renfrew ;

"The Renfrew District Committee" means the district committee of the first or upper district of the county of Renfrew ;

"Road" includes any carriageway being a public highway and the carriageway of any public bridge forming part

of or leading to the same and any street footpath lane footway pavement square court or passage whether a thoroughfare or not and whether or not there are houses in such road; A.D. 1905.

“Local authority” means and includes town councils county councils and district committees in the exercise of all or any of the powers vested or to be vested in them in any manner of way and includes the authority in whom a road is vested or who have the control of a road and also so far as regards section 30 of the Tramways Act 1870 as varied by this Order and subsection (11) of the section of this Order of which the marginal note is “Protection of local authorities” means and includes the Airdrie Coatbridge and District Water Trustees;

“The town clerk” means the town clerk of the city;

“The Act of 1870” means the Tramways Act 1870;

“The Act of 1897” means the Glasgow Corporation (Improvements and General Powers) Act 1897;

“The Order of 1901” means the Glasgow Corporation (Tramways and General) Order 1901;

“The Order of 1904” means the Glasgow Corporation (Tramways &c.) Order 1904;

“The Tramways Acts” means the Glasgow Corporation Tramways Acts 1870 to 1904.

3. The Lands Clauses Acts and section 3 (Interpretation of terms) and Parts II. and III. of the Act of 1870 except— Incorporation of Acts.

Section 25 (Mode of formation of tramways);

Section 34 (Power for promoters to use tramways with flange-wheeled carriages &c.);

Section 43 (Future purchase of undertaking by local authority);

Section 44 (Power of sale);

Section 46 (Byelaws by local authority Promoters may make certain regulations);

Section 47 (Penalties may be imposed in byelaws);

Section 48 (Power to local authority to license drivers conductors &c.);

Section 54 (Penalty for persons using tramways with carriages with flange wheels &c.);

Section 56 (Recovery of tolls penalties &c.);

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Consolidation) Order Confirmation Act, 1905.

A.D. 1905. — so far as they are applicable for the purposes of and are not varied by or inconsistent with this Order are hereby incorporated with and form part of this Order and this Order shall be deemed to be a special Act within the meaning of those Acts.

Amendment
of Tramways
Act 1870.

4. Parts II. and III. of the Act of 1870 so far as incorporated with this Order shall for the purposes of the tramway undertaking have effect subject to the following modifications thereon or additions thereto (that is to say) :—

Section 26 shall have effect as if it were also therein provided that the Corporation shall lay before the Board of Trade a plan showing the proposed mode of carrying out the work and a statement of the materials intended to be used therein and the Corporation shall not commence the work until such plan and statement have been approved by the Board of Trade and after such approval the work shall be executed in accordance in all respects with such plan and statement and under the superintendence and to the reasonable satisfaction of the local authority as provided by the said section :

Sections 26 and 30 as varied by this Order shall have effect as if fourteen days were therein mentioned instead of seven days and as if it were also therein provided that the Corporation shall at the same time as they give to each local authority notice of any proposed work deliver to each such local authority a plan and section of the proposed work :

Sections 26 to 33 and 41 as varied by this Order and section 59 shall have effect as if all posts tubes pipes wires and other apparatus used or to be used by the Corporation for the purposes of mechanical power were parts of the tramways :

Section 27 as varied by this Order shall have effect as if it were therein provided that any penalty therein mentioned shall belong to and be paid over to the local authority :

Section 28 as varied by this Order shall have effect as if six feet were therein mentioned instead of four feet and as if it were also therein provided that if the Corporation abandon the tramway undertaking or any part thereof and take up the tramways the portion of the road upon which such tramways are laid shall be restored by them in manner therein mentioned to as good a condition as that in which it

was before such tramways were laid thereon or at the time of abandonment as the local authority shall direct: A.D. 1905.

Section 30 as varied by this Order shall have effect as if it were therein provided that where in consequence of the execution of any of the works by this Order authorised or by the construction of any of the works by this Order vested in the Corporation it is necessary to alter the position or in any way interfere with the lines or levels of the mains aqueducts conduits or lines of pipes tubes wires apparatus or other works of any local authority including consumers' connections such alteration or interference shall at the option of the local authority be carried out by them at the expense of the Corporation. Provided that in all cases where works are to be executed by the local authority and to be paid for by the Corporation the local authority shall use every means in their power to have the works executed as economically as possible and with all reasonable despatch:

Section 31 as varied by this Order shall have effect as if it were also therein provided that the new altered or substituted works to be provided by the Corporation shall include the alteration of any existing manholes connected with the sewers of the sanitary authority or the construction of any manholes in lieu thereof so that the openings of such new altered or substituted manholes shall if necessary be placed at the side of the road with a diagonally built means of access for such sewers:

Sections 32 and 33 as varied by this Order shall have effect as if it were therein provided that any pipe drain sewer tube wire apparatus or other works already formed or laid or to be hereafter formed or laid of any local authority and lateral or private connections to communicate therewith were a pipe for the supply of gas or water:

Section 41 shall have effect as if it were also therein provided that the materials of the tramways removed may be sold as therein provided or used by the local authority themselves and that the local authority may out of the proceeds of such sale or of the value of the materials so used pay and reimburse themselves the amount of the cost certified as therein provided and of the cost of sale and the balance if any of the proceeds of such sale or of such value shall be paid over by the local authority to the Corporation:

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Section 45 shall have effect as if it were therein provided that the list of all the tolls and charges authorised to be taken shall only be exhibited in a conspicuous place inside each of the carriages used upon the tramways:

Section 50 shall have effect as if twenty pounds were therein mentioned instead of five pounds.

Tramways
to vest in
Corporation.

5. Subject to the provisions of this Order the tramway undertaking as it existed and was vested in the Corporation immediately before the passing of the Act confirming this Order (including the tramways which are shortly described in the First Schedule to this Order) shall be and continue to be vested in the Corporation to the same extent and effect as if the Act confirming this Order had not been passed and shall be so held used and enjoyed by them.

The Corporation may so far as not already done make and form lay down and may renew work use and maintain the tramways with all necessary and proper rails chairs plates sleepers channels wires poles posts conduits section boxes tubes ropes engines engine houses subways manholes shafts junctions cross-overs passing-places stables points turntables turnouts carriage-houses offices carriages sheds buildings warehouses works and conveniences connected therewith or for the purposes thereof.

Provided that nothing in this section shall authorise any interference with electric lines and works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

Provided also that in making forming or laying down the tramways the Corporation may make form and lay down the same in the lines and according to the levels and within the limits of deviation shown on the plans and sections deposited with respect thereto and in all respects in accordance with those plans and sections.

New tram-
ways.

6. Subject to the provisions of this Order the Corporation may make form lay down renew work use and maintain the tramways hereinafter in this section described in the lines and according to the levels shown on the deposited plans and sections with all necessary and proper rails chairs plates sleepers channels wires poles posts conduits section boxes tubes ropes engines engine-houses subways manholes shafts junctions crossovers passing-places stables points turntables turnouts carriage-houses offices

carriages sheds buildings warehouses works and conveniences connected therewith or for the purposes thereof: A.D. 1905.

Provided that nothing in this section shall authorise any interference with electric lines and works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways hereinbefore in this section referred to and by this Order authorised are—

- (1) Tramway No. 4 7 furlongs 1·20 chains in length commencing in the city by a junction with the tramways in Great Western Road at a point 19 yards or thereabouts eastwards from the centre of Kirklee Road thence turning into and passing along Kirklee Road Kirklee Bridge Montgomerie Street Gower Street Oran Street and Gairbraid Street and terminating by a junction with the tramways in Gairbraid Street in the city at a point 13 yards or thereabouts southwards from the centre of Oran Street;
- (2) Tramway No. 5 1 mile 1 furlong 8·06 chains in length commencing in the city by a junction with the tramways in Gairbraid Street at a point 16 yards or thereabouts northwards from the centre of Bilsland Drive thence turning into and passing along Bilsland Drive and Hawthorn Street and terminating by a junction with the tramways in Hawthorn Street in the city at a point 14 yards or thereabouts eastwards from the centre of Saracen Street;
- (3) Tramway No. 7 4 furlongs 0·18 chain in length commencing in the city by a junction with the tramways in Springburn Road at a point 18 yards or thereabouts northwards from the centre of Union Street thence passing into and along Balgray Hill and terminating in Balgray Hill in the city at a point 10 yards or thereabouts southwards from the centre of Belmont Road;
- (4) Tramway No. 8 4 furlongs 7·54 chains in length commencing in the city by a junction with the tramways in Castle Street at a point 12 yards or thereabouts southwards from the centre of Garngad Road thence turning into and passing along Garngad Road and

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terminating in that road in the city at a point 8 yards or thereabouts westwards from the centre of Blochairn Road ;

- (5) Tramway No. 9 1 mile 1·74 chains in length commencing in the city by a junction with the tramways in Great Eastern Road at a point 19 yards or thereabouts eastwards from the centre of Dalmarnock Street thence turning into and passing along Dalmarnock Street and Springfield Road and into Dalmarnock Road and terminating by a junction with the tramways in Dalmarnock Road in the city at a point 14 yards or thereabouts northwards from the centre of Springfield Road ;
- (6) Tramway No. 10 2 furlongs 5·60 chains in length commencing in the city by a junction with the tramways in Grange Road at a point 30 yards or thereabouts northwards from the centre of Battlefield Road thence turning into and passing along Battlefield Road and Sinclair Drive and terminating in Sinclair Drive in the city at a point 11 yards or thereabouts northwards from the centre of Cartside Street ;
- (7) Tramway No. 11 1 mile 6 furlongs 7·07 chains in length commencing in the burgh of Kinning Park by a junction with the tramways in Great Wellington Street at a point 17 yards or thereabouts northwards from the centre of Park Street thence turning into and passing along Park Street St. James Street West Scotland Street Shields Road Nithsdale Road Nithsdale Street Allison Street and Cathcart Road and terminating by a junction with the tramways in Cathcart Road in the city at a point 13 yards or thereabouts southwards from the centre of Allison Street ;
- (8) Tramway No. 12 6 furlongs 5·41 chains in length commencing in the city by a junction with the tramways in St. Andrew's Drive at a point 14 yards or thereabouts northwards from the centre of Nithsdale Road thence turning into and passing along Nithsdale Road and terminating in that road in the city at a point 19 yards or thereabouts eastwards from the centre of Dumbreck Road ;
- (9) Tramway No. 13 6 furlongs 5·45 chains in length commencing in the city by a junction with the tramways

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in Main Street Maryhill at a point 27 yards or thereabouts eastwards from the centre of the bridge carrying the said street over the North British Railway thence passing across that bridge and along Canniesburn Road and terminating in that road in the city at a point 100 yards or thereabouts eastwards from the centre of the Garscube Bridge carrying the Canniesburn Road over the River Kelvin;

- (10) Tramway No. 14 1 mile 5·40 chains in length commencing in the city by a junction with the tramways in Saracen Street at a point 17 yards or thereabouts southwards from the centre of Bardowie Street thence turning into and passing along Balmore Road and Drummond Street Lambhill and terminating in Drummond Street in the county of Lanark at a point 63 yards or thereabouts westwards from the centre of Balmore Road;
- (11) Tramway No. 15 1 mile 8·17 chains in length commencing in the county of Lanark by a junction with the tramways in the Glasgow and Coatbridge Road at a point 8 yards or thereabouts westwards from the boundary between the parishes of Glasgow and Old Monkland at Barrachnie thence passing along that road and Main Street Baillieston and terminating in Main Street Baillieston in the county of Lanark at a point 138 yards or thereabouts westwards from the entrance into Rhinsdale House;
- (12) Tramway No. 16 4 miles 1 furlong 4·88 chains in length commencing in the county of Lanark by a junction with the tramways in Main Street Tollcross at a point 4 yards or thereabouts westwards from the centre of Causewayside Street thence passing along Main Street Tollcross the Glasgow and Uddingston Road Main Street Uddingston and terminating in Main Street Uddingston in the county of Lanark at a point 17 yards or thereabouts northwards from the centre of Uddingston Coal Road or Highway;
- (13) Tramway No. 18 4 furlongs 4·25 chains in length commencing in the city by a junction with the tramways in Cumbernauld Road at a point 120 yards or thereabouts northwards from the centre of the bridge carrying that road over the Caledonian Railway thence

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passing along Cumbernauld Road and terminating in that road in the city at a point 23 yards or thereabouts southwards from the centre of the north entrance to Barlinnie Prison.

The said tramways which shall be laid as double lines except Tramway No. 9 which will be partly single and partly double will be situate in the parishes of Glasgow Govan Cathcart Old Monkland and Bothwell the city and the burgh of Kinning Park and the counties of Lanark and Renfrew.

Overhead
wires &c.

7. Section 30 (except subsections (1) and (5) thereof) of the Act of 1870 shall in its application to the intended tramways have effect as if wires or apparatus laid in a road included wires or apparatus erected or carried over a road.

Alterations
of levels of
roads.

8. Subject to the provisions of this Order the Corporation may make in the lines and according to the levels shown on the deposited plans and sections the alterations of levels of roads hereinafter in this section described with all necessary roads approaches embankments walls junctions works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the said plans and described in the deposited books of reference as may be required for those purposes The alterations of levels of roads hereinbefore in this section referred to and by this Order authorised are—

(1) An alteration of the level of Dumbarton Road wholly in the parish of Govan in the burgh of Partick and the county of Lanark commencing at a point in that road 50 yards or thereabouts east of the east side of the bridge carrying the North British Railway over that road and terminating at a point 43 yards or thereabouts west of the west side of the said bridge and in connection therewith an alteration of the level of Hayburn Street wholly in the said parish burgh and county commencing at a point in that road where it joins Dumbarton Road and terminating at a point 5 yards or thereabouts south of the south building line of Dumbarton Road;

(2) An alteration of the level of Dumbarton Road wholly in the parish of Govan in the burgh of Partick and the county of Lanark commencing at a point in that road 16 yards or thereabouts east of the east side of the east bridge carrying the Lanarkshire and Dumbartonshire

Railway over that road and terminating at a point 20 yards or thereabouts west of the west side of the west bridge carrying the said railway over the said road; A.D. 1905.

- (3) An alteration of the level of Coustonholm Road wholly in the parish of Eastwood in the burgh of Pollokshaws and the county of Renfrew commencing at a point in that road 25 yards or thereabouts east of the east side of the bridge carrying the Cathcart District Railway over that road and terminating at a point 20 yards or thereabouts west of the west side of the said bridge;
- (4) An alteration of the level of Cathcart Road wholly in the parish of Cathcart and the county of Renfrew commencing at a point in that road 10 yards or thereabouts north of the north side of the bridge carrying the Cathcart District Railway over that road and terminating at a point 15 yards or thereabouts south of the south side of the said bridge and in connection therewith (A) an alteration of the level of Rhannan Road in the said parish and county commencing at a point in that road 4 yards or thereabouts east of the east building line of Cathcart Road and terminating at the junction of Rhannan Road with Cathcart Road and (B) an alteration of the level of Newlands Road in the said parish and county commencing at a point 5 yards or thereabouts west of the west building line of Cathcart Road and terminating at the junction of Newlands Road with Cathcart Road.

9. The said alterations of levels of roads including where necessary the lowering of footpaths water channels and drains shall be carried out by the Corporation at their own expense and to the reasonable satisfaction of the local authority subject to the following regulations (that is to say):—

Regulations
as to altera-
tions of road
levels.

- (1) The Corporation before commencing any of the works or operations referred to in this section shall give to the local authority notice of their intention specifying the time at which they will commence the same such notice to be given at least fourteen days before the commencement of such works or operations:
- (2) The Corporation shall execute the whole of such works or operations under the superintendence of the local authority unless that authority refuses or neglects to give such superintendence at the time specified in the

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notice or discontinues the same during the execution of such works or operations :

- (3) The Corporation shall pay all reasonable expenses to which the local authority is put on account of such superintendence :
- (4) The Corporation shall to the reasonable satisfaction of the local authority provide efficient means of disposing of surface water on the portions of the roads affected by such works or operations :
- (5) The Corporation in carrying out such works or operations shall if required by the local authority lay the whole area of the roadway affected thereby with granite sets nidded on the top surface :
- (6) The Corporation shall to the reasonable satisfaction of the local authority make good any interference with or injury to the electric lighting cables or other works as well as the alteration of arc-lamp poles and branches on the portions of the roads affected by such works or operations :
- (7) The Corporation shall execute the whole of such works or operations in a safe and satisfactory manner and with as little detriment as practicable to the roads or the ordinary traffic thereon and to the foot passenger traffic on the pavements :
- (8) Upon the completion of such works or operations the local authority shall take over and thereafter maintain and repair the portions of the roads affected thereby Provided that nothing in this section shall affect the liability of the Corporation to maintain the portions of those roads which they are liable to maintain under the provisions of section 28 of the Act of 1870 as varied by this Order.

Tramway
lye in
Partick.

10. The Corporation in carrying out the alteration of the level of Dumbarton Road by this Order authorised shall remove the existing tramway lye at Peel Street and under the North British Railway Bridge there to a place to be approved of by the town council of Partick.

Alteration of
steps areas
pipes &c.

11. The Corporation within the limits of deviation defined on the deposited plans may for the purposes of and in connection with the said alterations of levels of roads but subject to the provisions of this Order raise sink or otherwise alter or cause to

be altered the position of any of the steps areas cellars cellar-flaps gratings fencings windows and watercourses pipes or spouts belonging to any house or building and may remove all other obstructions so that the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the Corporation shall make reasonable compensation to any person who may sustain injury by any such alteration the amount of such compensation to be determined in default of agreement by arbitration.

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12. For the purposes and during the execution of the said alterations of levels of roads and works connected therewith and subject to the provisions of this Order the Corporation may use break up cross over or under alter or stop up temporarily any roads paths quays bridges railways tramways canals passages sewers drains watercourses mill-leads or mill-dams sluices gas and water pipes and electric apparatus in any of the lands shown on the deposited plans and specified in the deposited books of reference which they may find it expedient for any of those purposes so to interfere with providing when possible a proper temporary substitute before interrupting the traffic on any such road path quay bridge railway tramway canal or passage or the flow of sewage gas water or electricity in any such sewer drain watercourse canal mill-lead mill-dam sluice pipe or apparatus and making full compensation to all persons injuriously affected by the exercise of the powers of this section the amount of such compensation to be determined in default of agreement by arbitration :

Alteration of roads &c. temporarily.

Provided that nothing in this section shall extend to authorise any interference with electric apparatus or other property of His Majesty's Postmaster-General Provided also that nothing in this section shall authorise any interference with electric lines and works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

13. Whereas the said alterations of levels of roads may affect the works of railway companies (in this section called for their respective interests "the company") therefore the following provisions shall unless otherwise agreed have effect and be binding on the Corporation (that is to say) :—

Protection of railway works.

- (1) In altering the level of any road over which a railway of the company is carried by means of a bridge the

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Corporation shall not without the consent of the company injuriously interfere with permanently the access to the passenger or goods station or the area of the booking hall or works connected therewith of the company and if any such interference takes place the Corporation shall carry out the alteration of the level of such road so as to interfere as little as may be with the access to such station or the area of such booking hall or works connected therewith :

- (2) Any alterations that may require to be made upon the access to such station or the area of such booking hall or works connected therewith in consequence of the alteration of the level of such road shall be executed by and at the cost of the Corporation and on the completion thereof the altered works shall be taken over by the company :
- (3) Any portion of the abutments of a bridge carrying a railway of the company over any road to be altered as aforesaid and any portion of any retaining or other wall that may be exposed by such alteration shall be dressed and finished by and at the cost of the Corporation and in such a manner as to be uniform with the portion of such bridge and retaining or other wall as may be above the present surface of the road :
- (4) Before commencing any of the works or operations referred to in this section the Corporation shall submit plans and sections thereof to the company for their approval and the said works or operations shall be executed in conformity with the said plans and sections so approved and at the sight and to the reasonable satisfaction of the engineer of the company Provided that such approval as aforesaid shall not be unreasonably withheld and that it shall be deemed to have been given unless the company signify their disapproval and the grounds thereof within fourteen days after submission of the said plans and sections :
- (5) Any difference between the Corporation and the company or their engineer in connection with anything contained in this section shall failing agreement be determined by arbitration and the costs of the reference shall be borne as the arbiter shall direct.

14. The authorised tramways shall be completed within four years and the intended tramways and the said alterations of levels of roads shall be completed within five years from the passing of the Act confirming this Order and on the expiration of those periods the powers granted to the Corporation for executing the authorised and intended tramways and the said alterations of levels of roads or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

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Periods for completion of works.

15. Subject to the provisions of this Order the Renfrew County Council may for the purpose of widening MacQuisten Bridge and rebuilding Auldhouse Bridge and of widening the approaches to those bridges purchase feu or otherwise acquire compulsorily or by agreement and may hold and use for the purpose of such widening and rebuilding the lands delineated on the deposited plans and described in the deposited books of reference The lands hereinbefore in this section referred to are—

Renfrew County Council to acquire lands.

- (1) Certain lands in the parish of Eastwood in the burgh of Pollokshaws and the county of Renfrew adjoining and on the east and west sides and at the north end of the said MacQuisten Bridge;
- (2) Certain lands in the parish of Cathcart in the county of Renfrew adjoining and on the east and west sides and at the south end of the said MacQuisten Bridge;
- (3) Certain lands in the parish of Eastwood in the burgh of Pollokshaws and the county of Renfrew adjoining and on the south side and at the west end of the said Auldhouse Bridge;
- (4) Certain lands in the parish of Eastwood and the county of Renfrew adjoining and on the south side and at the east end of the said Auldhouse Bridge.

16. For the protection of the Renfrew County Council and the Renfrew District Committee (who for their respective rights jurisdictions and interests under and in virtue of the Act of 1870 the Local Government (Scotland) Acts the Roads and Bridges (Scotland) Acts and the Public Health (Scotland) Acts are in this section referred to as "the Renfrew county authorities") the following provisions shall unless otherwise agreed have effect and be binding on the Corporation (that is to say):—

Protection of county of Renfrew.

- (1) The lowering of Kilmarnock Road for the purposes of the authorised tramways under the bridge carrying the

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Cathcart District Railway over the said road shall be carried out by and at the sole cost and expense of the Corporation and in a safe and satisfactory manner and without detriment to the roads or the ordinary traffic thereon and in accordance with the plan and section already approved by the Renfrew county authorities :

- (2) The Corporation shall not construct the authorised tramways over the bridge known as MacQuisten Bridge carrying the Kilmarnock Road over the River Cart or over the bridge known as Auldhouse Bridge carrying the Thornliebank Road over the Auldhouse Burn until such bridges have been widened and rebuilt respectively in manner hereinafter in this section provided :
- (3) The said MacQuisten Bridge shall be extended to a width of sixty feet between the parapets by building an extension in stone and the approaches to the bridge shall be correspondingly widened All such works shall be carried out by the Renfrew county authorities in accordance with plans and specifications to be approved by the Corporation and the provost magistrates and councillors of the burgh of Pollokshaws (in this section called "the town council") and the Corporation shall for themselves and the town council pay to the Renfrew county authorities one-half of the cost of and incident to the said extension including the cost of acquiring land for such extension and payment shall be made from time to time as the expenditure is incurred upon the requisition of the Renfrew county authorities and as regards the construction of the bridge and relative works such requisitions shall be sufficiently vouched by the certificates of the architect or engineer in charge :
- (4) The said Auldhouse Bridge shall be taken down and rebuilt either of stone or concrete with stone rings and parapets and of a width of sixty feet between the parapets and the south-east approach to the said bridge shall be correspondingly altered and widened All such works shall be carried out by the Renfrew county authorities in accordance with plans and specifications to be approved by the Corporation and the town council and the cost of and incident to such works including the cost of acquiring land therefor shall as to six hundred

pounds thereof be paid to the Renfrew county authorities by the Water Department of the Corporation and as to one-half of the balance of such cost after deducting the said sum of six hundred pounds be paid by the Corporation for themselves and the town council and payment shall be made from time to time upon the requisition of the Renfrew county authorities and as regards the construction of the bridge and relative works such requisition shall be sufficiently vouched by the certificates of the architect or engineer in charge:

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(5) The Renfrew County Council may borrow such money as may be required for payment of the amount which by this Order the Renfrew county authorities are under obligation to expend or contribute towards the cost of the said extension of MacQuisten Bridge and the approaches thereto including the acquisition of land therefor and towards the rebuilding of Auldhouse Bridge and the altering and widening of the south-east approach thereto including the acquisition of land therefor:

(6) In exercising the power to borrow conferred on them by this section the Renfrew County Council shall have the powers of and be subject to the conditions contained in section 67 of the Local Government (Scotland) Act 1889 as if the purposes for which the Renfrew County Council are by this section authorised to borrow were purposes for which they are authorised to borrow by that Act:

(7) Any difference between the Corporation the Renfrew county authorities the town council or any of them in connection with anything contained in this section shall failing agreement be determined by arbitration.

17. The powers of the Corporation and of the Renfrew County Council respectively for the compulsory purchase of land for the purposes of this Order shall cease after the expiration of three years from the passing of the Act confirming this Order.

Period for compulsory purchase of land.

18. Whereas in the construction of the works by this Order authorised or otherwise in exercise of the powers of this Order it may happen that portions only of the houses or other buildings shown on the deposited plans may be sufficient for the purposes of

Owners may be required to sell parts only of houses or buildings.

[Ch. cxxviii.] *Glasgow Corporation (Tramways Consolidation) Order Confirmation Act, 1905.* [5 Edw. 7.]

A.D. 1905. — the same and that such portions may be severed from the remainder of the said properties without material detriment thereto. Therefore notwithstanding section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 the owners of and other persons interested in the houses or other buildings described in the Second Schedule to this Order and whereof parts only are required for the purposes of this Order may if such portions can in the opinion of the arbiter to whom the question of disputed compensation shall be submitted be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the Corporation or the Renfrew County Council as the case may be the portions only of the properties so required without the Corporation or the Renfrew County Council as the case may be being obliged or compellable to purchase the whole or any greater portion thereof the Corporation or the Renfrew County Council as the case may be paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other persons interested therein by severance or otherwise.

Under
pinning or
otherwise
strengthen-
ing houses.

19. Whereas 'in order to avoid in the execution and maintenance of any works by this Order authorised injury to the houses and buildings within one hundred feet of such works it may be necessary to underpin or otherwise strengthen the same Therefore the Corporation at their own costs and charges may and if required by the owners or lessees of any such house or building shall subject as hereinafter in this section provided underpin or otherwise strengthen the same and the following provisions shall unless otherwise agreed have effect and be binding on the Corporation (that is to say):—

- (1) At least ten days' notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened:
- (2) Each such notice if given by the Corporation shall be served in manner prescribed by the Lands Clauses Consolidation (Scotland) Act 1845 and if given by the owners or lessees of any such house or building to be underpinned or strengthened shall be sent to the principal office of the Corporation:
- (3) If any owner lessee or occupier of any such house or building or the Corporation as the case may require

shall within seven days after the giving of such notice give a counter-notice in writing that he or they as the case may be disputes the necessity of such underpinning or strengthening the question of the necessity shall failing agreement be determined by arbitration: A.D. 1905.

- (4) The arbiter to be appointed shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Corporation may and shall proceed forthwith so to underpin or strengthen the said house or building:
- (5) The Corporation shall be liable to compensate the owners lessees and occupiers of every such house or building for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this enactment:
- (6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Corporation such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against further injury arising from the execution or use of the works of the Corporation then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the arbiter the Corporation shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof:
- (7) Nothing in this section contained nor any dealing with any property in pursuance of this section shall relieve the Corporation from the liability to compensate under the Lands Clauses Consolidation (Scotland) Act 1845 or under any other Act:
- (8) Every case of compensation to be ascertained under this section shall be ascertained according to the provisions

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of the Lands Clauses Acts as varied by the immediately succeeding section of this Order :

- (9) Nothing in this section shall repeal or affect the application of section 90 of the Lands Clauses Consolidation (Scotland) Act 1845.

Compensation to be settled by single arbiter.

20. All cases of disputed compensation in respect of land taken compulsorily under this Order or whereby any compensation falls under this Order to be determined under the provisions of the Lands Clauses Acts shall notwithstanding anything contained in those Acts be determined by a single arbiter to be appointed by the parties or in case both parties do not concur in the appointment of a single arbiter it shall be in the power of either party to apply to the Secretary for Scotland to appoint a single arbiter to determine the compensation to be paid and it shall not be competent thereafter to have the same determined by arbiters oversman sheriff or jury acting under the last-mentioned Acts The said arbiter upon appointment shall be deemed to be a sole arbiter within the meaning of the Lands Clauses Acts and the provisions of those Acts with regard to arbitration shall apply accordingly and the arbiter shall notwithstanding anything contained in those Acts determine the amount of the expenses in the arbitration and such determination shall be final The remuneration of the said arbiter shall failing agreement be fixed by the Secretary for Scotland The expression "land" in this section includes water and any right or servitude to or over land or water.

Taking of servitudes &c. by agreement.

21. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Corporation or the Renfrew County Council any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in or over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges or feu duties so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

Correction of errors &c. in deposited plans and books of reference.

22. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or described in the deposited books of reference the Corporation or the Renfrew County Council as the

case may be after giving ten days' notice to the owners lessees and occupiers affected by such proposed correction may apply to the sheriff for the correction thereof and if it appear to the sheriff that such omission misstatement or wrong description arose from accident or mistake he shall certify the same accordingly and shall in his certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the principal sheriff clerks of the counties of Lanark and Renfrew and a duplicate thereof with the town clerk of the city and with the town clerks of the burghs or clerks to the parish councils of the parishes in which the lands affected thereby are situate and such certificate and duplicates respectively shall be kept by such clerks with the other documents to which the same relate and thereupon the deposited plans and books of reference shall be deemed to be corrected according to such certificate and the Corporation or the Renfrew County Council as the case may be may take the lands and execute the works in accordance with such certificate.

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23. If any local authority or the Corporation on the application of or by agreement with any local authority alter widen or divert any road along or across which any of the tramways are laid or are authorised to be laid the Corporation shall at their own expense if the local authority require vary the position of any such tramway so that when such road is altered widened or diverted such tramway may subject to the provisions of this Order be constructed and maintained with reference to the imaginary centre lines of the altered widened or diverted road.

Alteration
 widening
 &c. of roads.

24. The rails of the tramways shall be such as the Board of Trade may approve.

Rails of
 tramways.

25. The Board of Trade may require the Corporation to adopt and apply such improvements in the tramways including the rails thereof as experience may suggest having regard to the greater security of the public and advantage to the ordinary traffic and the Corporation shall with all reasonable despatch comply with any order made by the Board of Trade for the purpose of carrying out any such improvements.

Use of im-
 proved form
 of rails.

26. The Corporation shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the

Penalty for
 not maintain-
 ing rails and
 roads.

[Ch. cxxviii.] *Glasgow Corporation (Tramways* [5 EDW. 7.]
Consolidation) Order Confirmation Act, 1905.

A.D. 1905. — substructure upon which the same rest and if the Corporation at any time fail to comply with this provision or with the provisions of section 28 of the Act of 1870 as varied by this Order they shall be subject to a penalty not exceeding five pounds for every day on which such non-compliance continues.

In case it is represented in writing to the Board of Trade by the local authority of the district in which the tramways are situate or by twenty inhabitant ratepayers of such district that the Corporation have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Act of 1870 as varied by this Order the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Corporation to such penalties in respect thereof as are by this section imposed.

Gauge of tramways.

27. The tramways shall be constructed and maintained on a gauge of four feet seven and three-quarter inches.

Tramways to be kept level with surface of road.

28. The tramways shall be constructed and maintained in such manner that the uppermost surface of the rail shall be kept on a level with the surface of the road and the groove in the rail shall in no case exceed one inch and a quarter in width.

Tramways not to be opened until certified.

29. The authorised tramways and the intended tramways shall not be opened for public traffic until the same have been inspected and certified to be fit for such traffic by the Board of Trade.

Passing places to be constructed.

30. Where in any road in which a double line of the tramways is or may be laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of such tramway than nine feet six inches the Corporation shall if required by the Board of Trade or the local authority construct and maintain cross-overs connecting the one line of tramway with the other and by means of such cross-overs the traffic shall when necessary be diverted from one line of tramway to the other.

Additional crossings &c.

31. The Corporation may subject to the provisions of this Order with the consent of the local authority from time to time

make on any road and maintain alter and remove such tramways as may be necessary to form connections between any of the tramways and such crossings passing places sidings junctions and other works in addition to those particularly specified in and authorised by this Order as they find necessary or convenient for the efficient working of the tramways or for providing access to any stables engine-sheds carriage-houses works yards or buildings owned occupied or leased by the Corporation and connected with the tramway undertaking. A.D. 1905.

32. Notwithstanding anything contained in this Order or shown on the plans and sections deposited with respect to Tramway No. 9 by this Order authorised the Corporation may with the consent of the Board of Trade lay down double lines in lieu of single lines on the said tramway: Single or double lines may be laid.

Provided that if in the construction of any works under this section any rail is intended to be laid nearer to the footpath than previously authorised in such a manner that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Corporation shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops and warehouses abutting on the place where such less space would intervene and such rail shall not be so laid if one-third of such owners or occupiers by writing under their hands addressed and delivered to the Corporation within three weeks after receiving the notice from the Corporation express their objection thereto.

33. Where by reason of the execution of any work affecting the surface or soil of the road along which the tramways are laid it shall in the opinion of the local authority be necessary or expedient temporarily to remove or discontinue the use of the tramways the Corporation shall within fourteen days of receiving an order in writing from the local authority under the hand of their clerk remove or discontinue the tramways for such term as may be necessary for the execution of the said work Provided that the Corporation with the sanction of the local authority and subject to such conditions and in accordance in all respects with such regulations as the local authority may from time to time make may in the same or any adjacent road construct and maintain so long as occasion may require temporary tramways in Temporary tramways.

**[Ch. cxxviii.] Glasgow Corporation (Tramways [5 EDW. 7.]
Consolidation) Order Confirmation Act, 1905.**

A.D. 1905. — lieu of the tramways so removed or discontinued Any difference between the Corporation and the local authority with respect to the reasonableness of any such conditions and regulations or with respect to the mode of constructing any such temporary tramways shall failing agreement be settled by arbitration.

Corporation
may use
flange wheels
on rails.

34. The Corporation or their lessees may use on the tramways carriages with flange wheels or wheels specially adapted to run on an edged rail or on or in a grooved rail or other rail adapted for street tramway purposes and subject to the provisions of this Order the Corporation or their lessees shall have the exclusive use of the tramways for carriages with flange wheels or other wheels specially adapted to run on an edged rail or on or in a grooved rail or other rail adapted for street tramway purposes.

Penalty on
others using
flange wheels
on rails.

35. If any person (except under a lease from or by agreement with the Corporation or under licence from the Board of Trade as by the Act of 1870 provided) uses the tramways with a vehicle having flange wheels or other wheels specially adapted to run on an edged rail or on or in a grooved rail or other rail adapted for street tramway purposes such person shall for every such offence be liable to a penalty not exceeding twenty pounds.

Width of
carriages.

36. No carriage used on the tramways shall extend beyond the outer edge of the wheels of such carriage more than eleven inches on each side.

Construction
of subsidiary
works for
operating
tramways by
mechanical
power.

37. For the purpose of working the tramways by mechanical power the Corporation may erect construct maintain and use dynamos and other electrical apparatus steam engines works and buildings and may construct erect lay down make and maintain on above or below the surface of any road poles posts electric conductors wires section boxes apparatus subways tunnels conduits ducts cables tubes and openings and may affix to any house or building and maintain brackets electric conductors wires and apparatus:

Provided that the Corporation shall make compensation to any person who may sustain injury by the affixing of any such brackets or other apparatus to any house or building the amount of such compensation to be determined in default of agreement by arbitration:

Provided also that nothing contained in this section shall authorise the Corporation except by agreement to affix any brackets

electric conductors wires and apparatus to any building structure or work vested in or in the occupation of— A.D. 1905.

- (1) His Majesty his heirs and successors either beneficially or as part of the hereditary revenues of the Crown or in trust for the public service or for public services; or
- (2) Any department of His Majesty's Government for public purposes or for the public service.

38. The Corporation may contract and agree with any person for the sale lease or supply to the Corporation of such mechanical power and of such buildings works plant apparatus engines and appliances as may be necessary to enable them to exercise the powers by this Order conferred. Purchase &c. of mechanical power &c.

39. Section 98 (All alienations of heritable property to be by public roup) of the Town Councils (Scotland) Act 1900 shall not apply to the tramway undertaking. Section 98 of Town Councils (Scotland) Act 1900 not to apply.

40. The Corporation may place and run carriages on and may work the tramways by animal power or (as hereinafter provided) by mechanical power and may provide such stables buildings carriages trucks harness engines machinery apparatus horses steam cable electric and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the tramways by animal or mechanical power. Corporation to work tramways.

41. The carriages used on the tramways may subject to the following provisions be moved by mechanical power (that is to say) :— Mechanical power.

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade :
- (2) The Board of Trade shall make regulations (in this Order referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Order of mechanical power on the tramway undertaking and for regulating the use of electrical power :
- (3) The Corporation or any person using any mechanical power on the tramway undertaking contrary to the provisions of this Order or of the Board of Trade regulations shall for every such offence be liable to

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a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof:

(4) The Board of Trade if they are of opinion —

(A) That the Corporation or such person have or has made default in complying with the provisions of this Order or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; or

(B) That the use of mechanical power as authorised under this Order is a danger to the passengers or the public;

may by order either direct the Corporation or such person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Corporation or such person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

Use of electrical power.

42. The following provisions shall apply to the use of electrical power under this Order unless such power is entirely contained in and carried along with the carriages (that is to say) :—

(1) The Corporation shall employ either insulated returns or uninsulated metallic returns of low resistance:

(2) The Corporation shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus:

(3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations

provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :

- (4) The Corporation shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Corporation either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the passing of the Act confirming this Order the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) If any difference arises between the Corporation and any other party with respect to anything hereinbefore in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbiter to be appointed by the Board and the cost of such determination shall be in the discretion of the Board or of the arbiter as the case may be :
- (7) The expression " Corporation " in this section shall include lessees licencees and any person owning working or running carriages over any of the tramways.

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Protection of
Commissioners of
Works.

43. The Corporation shall not except with the approval of the Commissioners of Works erect any generating station or take a supply of energy for traction purposes from any generating station situate within a distance of three hundred yards from any part of the grounds of Glasgow Cathedral unless the site for such generating station is specified in an Act of Parliament or in an Order confirmed by or having the effect of an Act of Parliament Provided always that this section shall not apply to—

- (1) Any sub-station for the transformation and distribution of electrical power;
- (2) Any station which may be in existence and which shall not be extended beyond the limits of the site occupied by the buildings of such station at the time of the passing of the Act confirming this Order.

Alteration of
lines of
Postmaster-
General.

44. Notwithstanding anything in this Order contained if any of the works relating to the tramways involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Act of 1870) to any such alteration.

Protection
of lines of
Postmaster-
General.

45. In the event of any of the tramways being worked by electricity the following provisions shall have effect (that is to say) :—

- (1) The Corporation shall construct their electric lines and other works of all descriptions and shall work the tramway undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the tramway undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Corporation as to compliance with this subsection shall be determined by arbitration as in this section provided:
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Corporation of their electric lines and works or by the

working of the tramway undertaking the Corporation shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection : A.D. 1905.

- (3) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Corporation or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Corporation and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Corporation as to any requirements so made shall be determined by arbitration as in this section provided :
- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Corporation is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Corporation's works or to the working of the tramway undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Corporation enter any of the Corporation's works for the purpose of inspecting the Corporation's plant and the working of the same and the Corporation shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Corporation pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Corporation or their

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agents the Corporation shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues:

- (6) Provided that nothing in this section shall subject the Corporation or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice:
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work:
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act:
- (9) In this section the expression "electric line" has the same meaning as in the Electric Lighting Act 1882:
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbiter appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 of the Regulation of Railways Act 1868 shall apply in like manner as if the Corporation or their agents were a company within the meaning of that Act:
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right

to proceed against the Corporation by indictment A.D. 1905.
action or otherwise in relation to any of the matters
aforesaid :

- (12) In this section the expression "the Corporation" includes their lessees and any person owning working or running carriages on any of the tramways.

46. Notwithstanding anything in this Order contained the Conveyance of Mails Act 1893 shall extend and apply to the tramways as if the same had been authorised by an Act of Parliament passed after the first day of January one thousand eight hundred and ninety-three and to the Corporation as the body or person owning or working such tramways. Application of Convey-
ance of Mails
Act 1893.

47. The Corporation or their lessees may form junctions between any of the tramways. Forming
junctions &c.

48. Subject to the provisions of this Order the Corporation may lease the tramway undertaking or any part thereof and they may enter into and carry into effect agreements with any person for constructing or working the tramways or for all or any of the following purposes (that is to say) :— Leasing
working &c.
of tramways.

The management use working and maintenance of the tramways :

The supply of any rolling or working stock and of officers and servants for the conduct of the traffic on the tramways :

The payments to be made and the conditions to be performed with respect to the matters aforesaid :

The interchange accommodation conveyance and delivery of traffic coming from or destined for the tramways and the undertaking of the other party contracting with the Corporation and the fixing and division between the contracting parties of the receipts arising therefrom :

Generally all matters incident to or consequent on the making or carrying into effect of any such agreement :

Provided that any lease under this section shall be subject to the approval of the Board of Trade.

49. The Corporation may provide maintain work and run omnibuses— Running of
omnibuses.

- (1) On any tramway route on which the running of cars is interrupted ;

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(2) In prolongation of any tramway route the extension of which may be contemplated by the Corporation ;

(3) For testing the amount of traffic along any route or between any particular points :

And the Corporation may demand and take for every passenger travelling upon such omnibuses a fare not exceeding the fare by this Order authorised in respect of the tramways :

Provided that the Corporation shall not use electrical energy as the motive power on such omnibuses unless such energy is entirely contained in and carried along with the omnibuses or any engine or other vehicle used for moving the same in such a manner that no magnetic or other influence is created which is likely to injuriously affect telegraphic communication by means of any telegraphs of the Postmaster-General :

Provided also that except in the case where the running of cars is interrupted the powers contained in this section shall not be exercised beyond a radius of three miles from any point on the tramways nor be exercised without the consent in writing of the local authority and if the Corporation consider themselves aggrieved by any decision of the local authority refusing such consent they may apply to the Board of Trade who may reverse or vary the decision of the local authority subject to such conditions if any as to the Board of Trade shall seem just.

Through cars.

50. The Corporation or their lessees may run through cars along any tramway route and such cars shall be distinguished from other cars in such manner as the Corporation may direct and they may demand and take for every passenger by such cars a fare not exceeding the maximum fare allowed by this Order for and in respect of the whole of such route or the whole of the portion thereof traversed by any such car.

Special cars.

51. The Corporation or their lessees may run special cars on the tramways and such cars shall be distinguished from other cars in such manner as the Corporation may direct and they may demand and take for such cars such fares and charges as may be agreed upon between the Corporation and the person using the same Provided that the running of such cars shall in no way curtail the ordinary service of cars.

Byelaws by Board of Trade.

52. Subject to the provisions of this Order the Board of Trade may make vary or repeal byelaws with regard to the tramways

upon which mechanical power may be used for all or any of the following purposes (that is to say) :— A.D. 1905.

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages :

For regulating the emission of smoke or steam from engines used on the tramways :

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety :

For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages :

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Order shall be liable to a penalty not exceeding forty shillings.

53. All orders and byelaws made by the Board of Trade under the authority of this Order shall be signed by a secretary or an assistant secretary of the Board.

Authentica-
tion of Board
of Trade
byelaws.

54. The Corporation may subject to the provisions of the immediately succeeding section of this Order make vary or repeal byelaws for all or any of the following purposes (that is to say) :—

Byelaws by
Corporation.

For licensing carriages using the tramways and the drivers motormen and conductors in charge of or using such carriages :

For regulating the duties of drivers motormen conductors and other servants in connection with the tramway undertaking :

For regulating the rate of speed to be observed in travelling upon the tramways subject as hereinafter provided :

For regulating the distance at which carriages using the tramways shall be allowed to follow one after the other :

For regulating the stopping of carriages using the tramways :

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For regulating the passage of traffic along or across the roads in which the tramways are or may be laid and along over or across such tramways for preventing obstructions to all or any part of the traffic on such roads or tramways and for providing that all or any part of the slow-going traffic on such roads shall keep as near as possible to the side of such roads :

For preventing the commission of any nuisance in or upon the carriages using the tramways or in or against any premises in connection with the tramway undertaking :

For regulating the travelling in or upon the carriages using the tramways and the number of passengers to be carried by such carriages.

Byelaws by
local autho-
rity.

55. The local authority for the burghs or districts beyond the city in which the tramways are or may be laid shall with regard to any of the tramways in their respective districts have the same power of making varying repealing and enforcing byelaws for all or any of the following purposes (that is to say) :—

For regulating the rate of speed to be observed in travelling upon the tramways subject as hereinafter provided ;

For regulating the distance at which carriages using the tramways shall be allowed to follow one after the other ;

For regulating the stopping of carriages using the tramways ;

For regulating the passage of traffic along or across the roads in which the tramways are or may be laid and along over or across such tramways for preventing obstructions to all or any part of the traffic on such roads or tramways and for providing that all or any part of the slow-going traffic on such roads shall keep as near as possible to the side of such roads ; ,

as is conferred on the Corporation and no byelaw made by the Corporation with respect to any of the matters in this section mentioned shall be of any force or effect beyond the city.

Byelaws as
to speed of
carriages.

56. No byelaw made under this Order by the Corporation or a local authority with respect to the rate of speed to be observed in travelling on the tramways shall sanction a higher rate of speed than that prescribed by any regulation or byelaw made by the Board of Trade at which engines cars carriages and trucks are to be

driven or propelled on the tramways but the Corporation or a local authority may if they think fit restrict the rate of speed to a lower rate than that so prescribed. A.D. 1905.

57. Any byelaw made under this Order by the Corporation or a local authority may impose reasonable penalties for offences against the same not exceeding forty shillings for each offence with or without further penalties for continuing offences not exceeding for any continuing offence ten shillings for each day during which such offence continues after conviction thereof but such byelaw shall be so framed as to allow in every case of part only of the maximum penalty being ordered to be paid or of the whole penalty being remitted. Penalties for offences against bye-laws.

58. No byelaw made under this Order by the Corporation or a local authority (except such byelaws made by the Corporation as relate solely to the proceedings of the Corporation or to their officers or servants in connection with the tramway undertaking) shall have any force or effect until the same shall be confirmed by the sheriff (excluding sheriffs substitute) of the county in which the Corporation or such local authority as the case may be has jurisdiction and be authenticated by his signature and such sheriff on the application of the Corporation or such local authority as the case may be shall examine and inquire into any byelaw submitted to him for that purpose and he may allow disallow or alter the same as he thinks fit. Confirmation of byelaws.

59. No byelaw made under this Order by the Corporation or a local authority shall be confirmed unless one month at least before the hearing of such application notice of the intention to apply for confirmation of the same shall have been given in one or more newspapers published in the city or published or circulating in the district of the local authority making such byelaw as the case may be and in the case of a byelaw made by a local authority outside the city unless such notice has also been given to the Corporation and in the case of a byelaw made by the Corporation unless such notice has also been given to the local authority concerned and any person desiring to object to any such byelaw on giving to the Corporation or to the local authority making the byelaw as the case may be notice of the nature of his objection ten days before the hearing of the application for the confirmation thereof may by himself his counsel or law agent be heard thereon but not so as to allow more than one objecting party to be heard on the same matter of objection. Notice of confirmation of byelaws.

[Ch. cxxviii.] *Glasgow Corporation (Tramways Consolidation) Order Confirmation Act, 1905.* [5 EDW. 7.]

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Proof of bye-laws.

60. Any byelaw made under this Order by the Corporation or a local authority may be proved by the production of a copy thereof certified by the town clerk or the clerk of the local authority making it that the same is a true copy and that the byelaw has been duly confirmed by the sheriff and such copy shall without proof of the signature of such clerk be evidence of the existence of such byelaw and that all preliminaries requisite to the making and operation thereof have been duly observed and fulfilled.

Carriages &c. not to be licensed.

61. Notwithstanding the provisions relating to tramways hackney carriages or stage coaches contained in any Act of Parliament (other than an Act relating to Inland Revenue) or in any byelaw made under any Act of Parliament it shall not be necessary for carriages using the tramways or for the drivers, motormen or conductors in charge of or using such carriages to be licensed except in accordance with the byelaws (if any) made by the Corporation under this Order.

Land for extraordinary purposes.

62. Whereas by the provisions of the Tramways Acts the Corporation were authorised by agreement to purchase lease or feu and hold land to an extent not exceeding sixty-six acres Therefore be it enacted that the power to purchase lease or feu and hold such land shall be deemed to have been authorised by and for the purposes of this Order and the Corporation may by agreement in addition to the said sixty-six acres of land purchase lease or feu and hold for the purposes of this Order additional land to an extent not exceeding four acres but nothing in this Order contained shall exempt the Corporation from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any land so held.

Protection of local authorities.

63. For the protection of the local authorities (in this section called for their respective interests "the authority") for the burghs and districts beyond the city in which the tramways are or may be laid the following provisions shall unless otherwise agreed have effect and be binding on the Corporation as regards the tramways in the district of the authority respectively (that is to say):—

- (1) The tramways shall unless as in this Order otherwise provided be constructed in accordance with the deposited plans and sections and shall be of the most approved type and construction and shall be dealt with generally by the Corporation on the same principle as the tramways in the city :

- (2) The Corporation shall pave and maintain with granite or other suitable material approved by the authority the portions of the roads which they are liable to maintain under the provisions of section 28 of the Act of 1870 as varied by this Order : A.D. 1905.
- (3) The Corporation shall deal with the tramways as regards motive power and shall work them in the same manner as in the case of the particular tramway lines in the city of which the tramways form a continuation Provided that the Corporation shall have power to adopt any special construction which may be found advisable in the central and populous districts of the city without being under any obligation to adopt such special construction beyond the city :
- (4) Except on special occasions all cars which may start on their journey beyond the city shall be run through to the central district of the city and all cars which may run beyond the city from the central district of the city shall similarly be through cars Provided that the running of cars on special occasions shall in no way curtail the ordinary service of through cars beyond the city :
- (5) All fares rates and charges levied by the Corporation beyond the city shall be at the same rate as those charged generally in the city Provided that this subsection shall not apply to any tramway over which the Corporation have only running powers :
- (6) The tramways shall not be used for experimental purposes except with the consent of the authority :
- (7) The Corporation shall construct the tramways in such a manner as will cause the least interference with the ordinary traffic on the roads :
- (8) The Corporation may provide and place appliances for or in connection with mechanical power traction in or under the roads but always in such a manner as will not interfere with the free and safe passage of ordinary traffic on such roads and the Corporation may also if necessary place poles section boxes and appliances for carrying wires at the sides of those roads but the

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position design and form of construction of such poles boxes and appliances shall be subject to the approval of the authority. Provided that the ordinary tramway poles shall be erected without pedestal covers in positions on the cross-section of the road to be approved by the authority. The Corporation shall immediately on the completion of their operations which they shall be bound to carry out with all speed restore to the satisfaction of the authority such portions of the footpaths with corresponding kerb and channel as may have been disturbed by their operations :

- (9) The Corporation shall not sell or assign the tramways to any third parties and they shall not lease the tramways without the consent in writing of the authority but in the event of the authority refusing their consent to the leasing of the tramways such refusal shall be deemed to be a difference within the meaning of this section and the advisability of leasing such tramways shall be determined by arbitration. Provided that the Corporation shall not lease separately the tramways beyond the city or any of them or lease them otherwise than as part of and on the same terms as the tramways in the city :
- (10) The authority shall at all times have free access to and communication with all their sewers and drains and power to lay lateral and private drains to communicate therewith without the consent or concurrence of the Corporation :
- (11) The Corporation shall pay to the authority the costs and expenses which they may reasonably incur or be put to in superintending the works by this Order authorised and shall also pay to the authority any extra expense they may at any time be put to by reason of the construction and existence of the tramway undertaking in respect of any constructions reconstructions alterations repairs connections conversions or otherwise upon or connected with bridges culverts mains pipes drains sewers tubes wires manholes watercourses or apparatus and generally in carrying into effect any of the powers to execute works vested in or conferred on the authority by any Act of Parliament in force at the passing of the

[Ch. cxxviii.] *Glasgow Corporation (Tramways* [5 EDW. 7.]
Consolidation) Order Confirmation Act, 1905.

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- (15) If any post or overhead wire becomes owing to the construction of any new road or otherwise in the opinion of the authority an obstruction the Corporation shall alter the position thereof in such a manner as the authority may direct but the Corporation may appeal against such direction to the Board of Trade and the decision of the Board shall be final :
- (16) The Corporation within three years from the date of the passing of the Act confirming this Order shall commence the construction of the intended tramways and shall complete the construction thereof within the period limited by this Order :
- (17) Notwithstanding anything contained in this Order or shown on the several plans and sections deposited with reference to the tramways they shall be constructed and maintained in such position in the road as the authority may prescribe Provided that where the position of the tramways is proposed to be altered and any rail is intended to be laid nearer to the footpath than previously authorised the Corporation shall give notice of their intention to the owners lessees and occupiers of all houses shops or warehouses abutting on any part of any road where for a distance of thirty feet or upwards it is proposed that a less space than nine feet six inches shall intervene between the outside of the footpath on either side of the road and the nearest rail of the tramway and if one-third of such owners lessees and occupiers shall by writing under their hands addressed and delivered to the Corporation within fourteen days after receipt of such notice from the Corporation express their objection to the altered position of the tramways the Corporation shall not construct the tramways in such altered position without the consent of the Board of Trade being first obtained which consent may be applied for by the Corporation and the authority jointly or by either of them If the necessary consent to the construction of the tramways in such altered position cannot be obtained the Corporation may construct such tramways in the position shown on such plans and sections :

(18) If the Corporation at any time find it necessary to remove snow or other matter impeding the traffic on the tramways they shall at their own cost remove such snow or other matter to the side of the road as the surveyor of the authority may direct. Provided that any snow or other matter removed by the Corporation from the grooves of the rails of the tramways shall not be allowed to remain on the road but shall be at once taken away by the Corporation: A.D. 1905.

(19) The Corporation in every case where they alter widen or divert any road under the powers of this Order shall provide efficient means of disposing of surface water:

(20) If the authority shall desire to lay down sidings from any of their metal quarries and to connect the same with the tramways the Corporation so far as they lawfully may shall afford to the authority all reasonable facilities for that purpose and shall allow the authority to run wagons on the tramways for the carriage of materials for the purposes of the authority to and from the said quarries on such terms and conditions as may be agreed upon between the Corporation and the authority:

(21) Any difference between the Corporation and any authority or any other person in connection with anything in this Order contained shall failing agreement be determined by arbitration.

64. Whereas certain of the tramways are or may be laid along roads which are carried over or pass under bridges belonging to railway and canal companies (in this section called for their respective interests "the company") Therefore the following provisions shall unless otherwise agreed have effect and be binding on the Corporation (that is to say):— Protection of railway and canal companies.

(1) Before commencing any works or operations affecting any of the bridges of the company or works connected therewith the Corporation shall submit plans sections working drawings and specifications of such works or operations to the company for their approval and the said works and operations shall be constructed and carried on in conformity only with the said plans sections working drawings and specifications at the

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sight and to the reasonable satisfaction of the engineer of the company and such works shall thereafter be maintained and repaired by the Corporation under his superintendence. Provided that the approval of the company as aforesaid shall not be unreasonably withheld and that it shall be deemed to have been given unless the company signify their disapproval and the grounds thereof within fourteen days after submission of the said plans sections working drawings and specifications :

- (2) Except as otherwise herein provided the Corporation shall not in the construction maintenance or use of the tramways injure alter or interfere with the structure of the said bridges of the company or of any of the railways sidings or works of the company or cause any interruption to or interference with the traffic on the railways or canals of the company :
- (3) The electric wires of the Corporation to be attached to the underside of any bridge of the company shall be fixed to the reasonable satisfaction of the engineer of the company and so as not to injure the said bridge :
- (4) If any injury to or interference with the bridges railways sidings or works of the company or any interruption to the traffic on their railways sidings or canals shall arise or be occasioned at any time by the works or operations of the Corporation in connection with the tramways and not by reason of any fault or neglect of the company or their servants or any person using their railways sidings or canals the Corporation shall forthwith make good or remove such injury interference or interruption at their own expense or in default of their doing so the company may execute the necessary works for that purpose at the expense of the Corporation and the Corporation shall pay to the company all costs and expenses incurred by them in so doing and all loss or damage sustained by the company in consequence of such injury interference or interruption :
- (5) Nothing in this Order contained or which may be done in pursuance thereof shall prevent the company so far as they have power to do so from maintaining and repairing and when necessary altering renewing or

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reconstructing such bridges or other works of the company or widening the lines of railway or canal under such bridges without interference on the part of the Corporation in respect of the tramways and without incurring any liability to the Corporation or to any party working or using the tramways for any loss injury damage expense or interruption of traffic on the tramways which may arise from such maintenance repair alteration renewal or reconstruction and any extra expense which the company may incur in such maintenance repair alteration renewal or reconstruction by reason of the formation maintenance working or user of the tramways shall be paid by the Corporation Provided that all such operations shall be executed by the company in such manner as to cause as little interruption or inconvenience as practicable to the traffic on the tramways and that the company shall if necessary lay at their own expense temporary tramways to maintain the continuity of the traffic on the tramways and the company shall give fourteen days' notice to the Corporation before commencing any such operations and the same so far as interfering with the tramways shall be conducted at the sight and to the reasonable satisfaction of the engineer of the Corporation :

- (6) Any difference between the Corporation and the company or their engineers in connection with anything contained in this section shall failing agreement be determined by arbitration and the costs of the reference shall be borne as the arbiter shall direct.

65. The following provisions for the protection of the Caledonian Railway Company (in this section called "the company") shall unless otherwise agreed have effect and be binding on the Corporation (that is to say) :—

Protection of
Caledonian
Railway
Company.

- (1) In constructing maintaining and using the Tramway No. 16 by this Order authorised across the Foxley Branch Railway where that railway crosses the road from Glasgow to Uddingston on the level the Corporation shall so carry out their works as not to injure or interfere with the use of such railway for railway traffic either during or after the construction of the tramway and shall at their own expense make all

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necessary alterations in the rails and permanent way of the railway at such level crossing as may be necessary to enable the tramway to cross the same on the level :

- (2) If the Board of Trade on application made to them by the Corporation or the company shall be of opinion that it is necessary in consequence of the construction and use of the tramway to make any provision for the regulation and protection of the traffic on the railway or tramway at the said level crossing beyond that which at present exists all works necessary for that purpose shall be provided by and at the expense of the Corporation who shall also repay to the company any additional costs or expenses to which the company may be reasonably put in connection with the working and regulation of the traffic at the said level crossing in consequence of any requirement of the Board of Trade under this section :
- (3) Before commencing any of the works or operations referred to in this section the Corporation shall submit plans and sections thereof to the company for their approval and the said works or operations shall be executed in conformity with the said plans and sections so approved and at the sight and to the reasonable satisfaction of the engineer of the company Provided that such approval as aforesaid shall not be unreasonably withheld and that it shall be deemed to have been given unless the company signify their disapproval and the grounds thereof within fourteen days after submission of the said plans and sections :
- (4) Any difference between the Corporation and the company or their engineer in connection with anything contained in this section or with respect to the conduct of the traffic on the tramway and railway respectively shall failing agreement be determined by arbitration and the costs of the reference shall be borne as the arbiter shall direct.

Protection of
Cathcart
District
Railway
Company.

66. The Corporation in lowering the road over which the railway of the Cathcart District Railway Company at the Pollokshaws East passenger and goods stations of that company is carried by means of a bridge shall not make the approach to the passenger station on the south steeper than 1 in 8 and any

additional steps rendered necessary by the lowering of such access shall be laid by the Corporation and the approach to the goods station shall not be made steeper than 1 in 18 and any portion of the existing access interfered with or altered shall be causewayed by the Corporation and immediately on completion be taken over by the said company Any alteration of the accesses to the said stations and the works in connection therewith shall be executed at the cost of the Corporation The Corporation shall also make adequate provision for the drainage of the said road as lowered under the said bridge and any portion of the abutments of the said bridge and retaining wall in connection therewith that may be exposed by such lowering of the road shall be dressed and finished at the cost of the Corporation uniform with the part thereof above the present surface of the ground.

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67. Whereas the Trustees of the Clyde Navigation (in this section called "the Clyde Trustees") have in order to facilitate the working of the portion of Tramway No. 1 authorised by the Glasgow Corporation Tramways Order 1903 on the road known as Finnieston Quay agreed subject to the conditions hereinafter set forth to set back the existing railing belonging to them along the south side of that road to the line shown on the plan signed by Eugene Wason the Chairman of the Commissioners acting under the provisions of the Private Legislation Procedure (Scotland) Act 1899 to whom the said Order was referred which plan is referred to as the signed plan (copies of which signed plan have been deposited in the Private Bill Office of the House of Commons the Parliament Office of the House of Lords and with the principal sheriff clerk of the county of Lanark) and to consent to the ground between the new and existing line of the said railing being used for traffic purposes Therefore be it enacted as follows:—

Protection
of Clyde
Trustees.

- (1) The Corporation shall construct the said portion of Tramway No. 1 in this section referred to situated on Finnieston Quay on the line and in the manner shown on the signed plan and in connection therewith they shall set back the said railing to the new line shown on the signed plan and shall remove the weighing machine water meter police call office and boxes to the several positions shown on the signed plan and shall also replace any surface gratings which may be disturbed and make good any drainage connections which may be interfered with:

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- (2) The surface of the ground belonging to the Clyde Trustees shown in red on the signed plan shall be causewayed and maintained by the Corporation and shall be available for traffic but the Clyde Trustees shall retain their full and unrestricted rights of property in the said ground and the use thereof by the public for traffic purposes shall not entitle the public or any person to acquire rights of way or other rights over the said ground :
- (3) In the event of the said portion of 'Tramway No. 1 in this section referred to being at any time abandoned the Clyde Trustees shall be entitled to resume possession of said ground and to replace the said railing on its former line :
- (4) The Corporation shall bear the whole cost of carrying out the several works and operations provided for in this section (including the cost of replacing said railing and works) and shall relieve the Clyde Trustees of any expense in connection therewith These several works and operations shall be carried out by the Corporation at the sight and to the satisfaction of the engineer of the Clyde Trustees :
- (5) In the event of any difference arising between the Corporation and the Clyde Trustees in connection with any of the matters or things referred to in this section the matter in difference shall failing agreement be determined by arbitration.

Cutting trees
overhanging
highways.

68. The Corporation may cut and lop any trees planted in or overhanging any road along which the tramways are or may be laid which may in any way interfere with the construction or working of the tramway undertaking or with the clear and safe passage of the carriages and the passengers thereon doing no unnecessary damage to the trees and making compensation to any person who may sustain injury by the exercise of the powers conferred by this section the amount of such compensation to be determined in default of agreement by arbitration :

Provided that except in cases of emergency the Corporation shall give written notice to the owners or reputed owners or their known agents or factors eight days before exercising the said powers.

69. If any person wilfully does or causes to be done with respect to any apparatus used for or in connection with the working of the tramway undertaking anything which is calculated to obstruct or interfere with the working of such undertaking or to cause injury to any person he shall (without prejudice to any proceedings by way of interdict or otherwise to which he may be subject) be guilty of an offence and on conviction shall be liable to a penalty not exceeding twenty pounds.

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Penalty for
malicious
damage.

70. The Corporation or their lessees may subject as hereinbefore provided demand and take for every passenger travelling upon the tramways or upon any tramways over which the Corporation may have running powers including every expense incidental to such conveyance a fare not exceeding one penny per mile or per stage of not less than one mile and in computing the said fare the fraction of a mile or of a stage shall respectively be deemed to be a mile or a stage.

Fares for
passengers.

For the purpose of this section the Corporation may divide the tramways into such stages as they shall deem necessary or expedient.

71. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof. All such luggage shall be carried by hand at the responsibility of the passenger and shall not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

Personal
luggage of
passengers.

72. The Corporation or their lessees shall not be bound unless they think fit to carry on the tramways any parcels goods articles or things other than passengers' personal luggage not exceeding the weight mentioned in the immediately preceding section.

Carriage of
goods &c.

73. Notwithstanding anything in this Order contained the Corporation shall not without the consent in writing of the local authority be entitled to carry on the tramways so far as within the county of Renfrew any parcels goods articles or things other than passengers' personal luggage.

Saving for
tramways in
county of
Renfrew.

74. The Corporation or their lessees may demand and take in respect of any parcels goods articles or things of the weights hereinafter mentioned carried by them on the tramways including every expense incidental to such conveyance a rate or charge not exceeding the following:—

Carriage of
parcels &c.

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For each separate parcel article or thing—

Not exceeding seven pounds in weight threepence:

Exceeding seven pounds and not exceeding fourteen pounds in weight fivepence:

Exceeding fourteen pounds and not exceeding twenty-eight pounds in weight sevenpence:

Exceeding twenty-eight pounds and not exceeding fifty-six pounds in weight ninepence:

Exceeding fifty-six pounds but not exceeding five hundred pounds in weight such sum as the Corporation may think fit.

Fares on
Sundays and
holidays.

75. The Corporation or their lessees shall not take or demand on Sunday or on any public holiday any higher fares rates and charges than those levied by them on ordinary week days.

Fares for
labouring
classes.

76. The Corporation at all times after the opening of the tramways for public traffic shall and they are hereby required to run at least two carriages each way every morning in the week and every evening in the week (Sundays excepted) at such hours not being later than seven in the morning or earlier than six in the evening respectively as the Corporation think most convenient for artisans mechanics and daily labourers at fares not exceeding one halfpenny per mile (the Corporation nevertheless not being required to take any fare less than one penny) Provided that in case of any complaint made to the Board of Trade of the hours appointed by the Corporation for the running of such carriages the Board of Trade shall have power to fix and regulate the same.

Fares to be
paid as
directed by
Corporation.

77. The fares rates and charges by this Order authorised shall be paid to such persons and at such places upon or near to the tramways and in such manner and under such regulations as the Corporation shall appoint by notice to be annexed to the list of fares rates and charges.

Recovery and
application
of penalties
&c.

78.—(1) All penalties for offences against any byelaws made under this Order by the Corporation or a local authority may be recovered and applied in the same manner as penalties are recovered and applied under the Acts for the time being in force for police or highway or other local government purposes as the case may be in the city or burgh or district in which such offences shall have been committed.

(2) All fares rates charges and other moneys which under this Order may become payable to or by the Corporation or their

lessees and all penalties for offences against any of the provisions of this Order or the Act of 1870 or any byelaw or regulation made under this Order or that Act the recovery of which is not provided for in the immediately preceding subsection may be sued for and recovered if the cause of action arise—

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(A) within the city in the Glasgow police court under the Acts for the time being in force for police purposes or at the option of the person claiming the payment in any other court of competent jurisdiction; or

(B) outwith the city in any court of competent jurisdiction; or in any case at the option of the person claiming the payment in manner provided by the Companies Clauses Consolidation (Scotland) Act 1845 with reference to the recovery of damages not otherwise provided for and penalties.

79. Notwithstanding anything contained in any public and general or local and personal Act any property found in any carriage using the tramways shall forthwith be delivered by the finder thereof to the conductor of such carriage and shall be taken by such conductor to a place to be appointed for the purpose by the Corporation and if such property be not claimed by the owner thereof within six months after the finding thereof it may be sold by the Corporation and the proceeds thereof applied in such manner as they shall appoint and if any person fails or refuses to deliver up any such property he shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds.

Lost property.

80. With respect to the notices to be given under the Act of 1870 or this Order and to the delivery thereof by or to the Corporation the following provisions shall have effect (that is to say):—

Notices under Tramways Act 1870.

- (1) Any notice shall be in writing and shall be sufficiently authenticated if given by a local authority by being signed by their clerk:
- (2) Any notice may be delivered to the Corporation a local authority or other person as the case may be by being left at their principal office or last known address or by being sent by post in a registered letter addressed to them at their principal office or last known address and every such letter shall be deemed to be received by the Corporation local authority or person as the case may be on the day on which the same ought to be delivered in the ordinary course of post.

[Ch. cxxviii.] *Glasgow Corporation (Tramways* [5 Edw. 7.]
Consolidation) Order Confirmation Act, 1905.

A.D. 1905.

Borrowing
on mortgage.

81. Whereas by the provisions of the Tramways Acts specified in the Third Schedule to this Order the Corporation were authorised to borrow various sums of money amounting in the whole to two million seven hundred thousand pounds Therefore be it enacted that the borrowing by the Corporation of the said sum of two million seven hundred thousand pounds so far as authorised by and for the purposes of the Tramways Acts shall be deemed to have been authorised by and for the purposes of this Order And whereas the Corporation as at the thirty-first day of May one thousand nine hundred and four had expended for capital purposes in connection with the tramway undertaking the sum of two million six hundred and ninety-nine thousand seven hundred and seventy-five pounds thirteen shillings and ninepence and have expended or are expending a further estimated sum of one hundred and thirty-five thousand two hundred and seventy-five pounds towards completing the authorised tramways making together a total expenditure for capital purposes of two million eight hundred and thirty-five thousand and fifty pounds thirteen shillings and ninepence And whereas it is expedient that the Corporation should be authorised to borrow further moneys for the purpose of completing the authorised tramways and for the purposes of this Order Therefore the Corporation may in addition to the said sum of two million seven hundred thousand pounds borrow for the purposes aforesaid any sum not exceeding four hundred thousand pounds and may make and grant mortgages and assignations of the tramway undertaking vested in and constructed by them under this Order or acquired or to be acquired by them and of the fares rates and charges authorised thereby and of any revenues or moneys or securities payable or available to the Corporation from the tramways or under any agreements relating thereto and of the corporate estate lands revenue and property belonging to them as administrators of the common good fund and property of the city in security of the payment of the money so borrowed and interest thereon and if after having borrowed the said sums or any part thereof the Corporation pay off the same by other means than by sinking fund they may reborrow the same.

Borrowing
on cash
credit.

82. The Corporation in the exercise of their borrowing powers under this Order may borrow from any bank or banking company on a cash credit opened and kept with such bank or banking company in the name of the Corporation according to the usage

of bankers in Scotland and to the extent of the sum to which they are by this Order authorised to borrow or any part thereof and may make and grant mortgages and assignments as aforesaid in security of the payment of the money so borrowed and interest thereon. A.D. 1905: —

83. The Corporation shall apply money so borrowed in payment firstly of the costs charges and expenses of and incidental to the preparing for obtaining and confirming of this Order or otherwise in relation thereto secondly in and for the purchase of lands and the construction of works by this Order authorised and thirdly for the general purposes of this Order but they shall not apply any of the money so borrowed or any other money of the nature of capital to the maintenance of works or other purposes to which revenue is properly applicable. Application of borrowed money.

84. Whereas in pursuance of the provisions of the Tramways Acts specified in the Third Schedule to this Order the Corporation as at the thirty-first day of May one thousand nine hundred and five set apart out of the revenue of the tramway undertaking as a sinking fund a sum which with the interest thereon amounts to four hundred and forty-nine thousand two hundred and seventy-four pounds fifteen shillings and two pence And whereas the whole of that amount has been applied in reduction of the amount borrowed by the Corporation Therefore be it enacted that the said sum shall be deemed to have been set apart and applied as a sinking fund provided under and for the purposes of this Order and the Corporation shall during the year ending the thirty-first day of May one thousand nine hundred and six and annually thereafter set apart out of the revenue of the tramway undertaking a sinking fund of not less than two pounds per centum on the amount borrowed by them for the purposes of this Order as at the thirty-first day of May preceding and not paid off by other means than by sinking fund and shall accumulate the same and the interest thereon at a rate of not less than three per centum per annum as a sinking fund until the amount accumulated is sufficient to pay off the principal amount so borrowed and remaining unpaid. Sinking fund.

85. The Corporation shall apply the sinking fund hereinbefore provided in whole or in part in paying off the principal sum so borrowed and remaining unpaid Provided that except as regards sinking fund so applied prior to the first day of June one thousand eight hundred and ninety-five they shall pay into such sinking fund in each year and accumulate until the whole of the sum so borrowed is discharged a sum equivalent to the interest which Application of sinking fund.

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A.D. 1905. — would have been produced by any part of such sinking fund so applied.

Appointment
of judicial
factor.

86. The mortgagees of the Corporation may enforce payment of the arrears of interest or principal or principal and interest due on their mortgages by the appointment of a judicial factor. In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor shall be made shall not be less than ten thousand pounds in the whole.

Restriction
on taking
houses of
labouring
class.

87. The Corporation or the Renfrew County Council as the case may be shall not under the powers of this Order purchase or acquire in any district within the meaning of the Public Health (Scotland) Act 1897 ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If the Corporation or the Renfrew County Council as the case may be acquire or appropriate any house or houses for the purposes of this Order in contravention of the provisions of this section they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Repeal of
Acts.

88.—(1) Subject to the provisions of this Order the Acts and Orders specified in the Fourth Schedule to this Order (in this Order referred to as "the repealed Acts") are hereby repealed to the extent mentioned in the second column of that schedule.

(2) Notwithstanding the repeal of the repealed Acts as A.D. 1905.
aforesaid—

- (A) All existing agreements bonds mortgages annuities stock or other securities made granted payable or created by the Corporation under any of the repealed Acts shall be and continue valid and available for all purposes and for and against all parties as if the Act confirming this Order had not been passed :
- (B) All property forming part of the tramway undertaking vested in the Corporation at the passing of the Act confirming this Order shall continue vested in the Corporation to the same effect and extent and all acts works matters and things done or commenced under the powers of the repealed Acts or any of them which were at the passing of the Act confirming this Order valid and available or in progress and all existing notices notices to treat agreements awards conveyances contracts covenants deeds instruments feus leases obligations rights and remedies shall be and continue valid and available for all purposes and for and against all parties and may be continued enforced and completed as if the Act confirming this Order had not been passed :
- (C) All actions arbitrations prosecutions and proceedings by with or against the Corporation by reason of any matter or thing done before the passing of the Act confirming this Order in execution of or in relation to any of the repealed Acts may be continued commenced or prosecuted by or against the Corporation as if the Act confirming this Order had not been passed :
- (D) All existing byelaws rules regulations orders and licences in execution of or in relation to any of the repealed Acts shall continue in force until repealed altered or revoked under the provisions of this Order or until their expiration and may be enforced in like manner and with the same penalties as if made for like purposes respectively under the provisions of this Order :
- (E) All fares rates rents charges and other sums at the passing of the Act confirming this Order due to the Corporation in respect of the tramway undertaking may be

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collected and recovered by the Corporation as if the Act confirming this Order had not been passed :

- (F) All books and documents which under any of the repealed Acts or otherwise would have been receivable in evidence shall be admitted in evidence in all courts and proceedings as if the Act confirming this Order had not been passed.

Saving for railway companies.

89. Notwithstanding the repeal of the repealed Acts nothing in this Order contained shall extend or be construed to extend to repeal abridge or in any way prejudice or diminish any of the rights powers or privileges conferred on and enjoyed under or in virtue of the repealed Acts by any railway company all of which rights powers and privileges are hereby saved and reserved entire and everything before the passing of the Act confirming this Order done and suffered under or confirmed by the repealed Acts shall be as valid as if such Acts were not repealed and the repeal thereof and this Order respectively shall be subject and without prejudice to everything so done or suffered and to all rights powers or privileges liabilities claims and demands both present and future which if the repealed Acts were not repealed would be incident to or consequent on any and every thing so done and suffered and the Corporation shall be liable in respect to all such rights powers or privileges liabilities claims and demands in the same manner and to the same extent as if the Act confirming this Order had not been passed.

Vesting certain tramways in burgh of Govan.

90.—(1) The Tramways No. 2 and No. 3 described in and authorised by section 25 (Power to Govan Commissioners to make new tramways) of the Act of 1897 as those tramways exist at the passing of the Act confirming this Order shall subject to the provisions of this Order be and continue vested in the provost magistrates and councillors of the burgh of Govan and shall be held used and enjoyed by them.

(2) The provisions of the Govan Burgh (Tramways) Act 1893 and the sections of the Glasgow and Ibrox Tramway Act 1877 referred to in the Fifth Schedule to this Order shall extend and apply to the said Tramways No. 2 and No. 3.

(3) The provost magistrates and councillors of the burgh of Govan may borrow such sums as may be necessary to defray the cost of constructing the said Tramways No. 2 and No. 3 and all

expenses which may be incurred by them in relation thereto in the same manner and subject to the same conditions as if those tramways had formed part of the tramways acquired by them under the Govan Burgh (Tramways) Act 1893. A.D. 1905.

91.—(1) Notwithstanding anything in this Order contained the lease set forth in the Sixth Schedule to this Order and made between the commissioners (now the provost magistrates and councillors) of the burgh of Govan and the Corporation and any Act or Order other than the repealed Acts relating to that portion of the tramway undertaking belonging to the provost magistrates and councillors of the burgh of Govan shall continue and remain in full force and effect to all intents and purposes as if the Act confirming this Order had not been passed. Continuing
lease with
burgh of
Govan.

(2) The portion of the Tramway No. 15 described in and authorised by the Order of 1901 so far as situate within the burgh of Govan at the passing of the Act confirming this Order shall belong to the provost magistrates and councillors of the burgh of Govan and be and be deemed to be part of the tramways leased to the Corporation by the lease set forth in the Sixth Schedule to this Order and the provisions of that lease shall so far as applicable apply to the said portion of tramway.

(3) Nothing in this Order or in the said lease shall (except as herein provided) affect or prejudice the running powers and other rights and powers conferred upon any railway company by the Vale of Clyde Tramways Acts 1871 1876 and 1888 and such running powers and other rights and powers (including power to any such railway company to make connections at their own cost into shipbuilding yards or other works in terms of the Vale of Clyde Tramways Act 1871) shall extend to the said portion of Tramway No. 15 authorised by the Order of 1901 within the burgh of Govan. Provided that the exercise of such running powers and other rights and powers over the said portion of Tramway No. 15 and also over the tramways authorised by the said Vale of Clyde Tramways Acts including the use of mechanical power required in connection with such running powers shall be subject to the byelaws and regulations of the provost magistrates and councillors of the burgh of Govan and such regulations as shall be fixed by the Board of Trade on the application of the said provost magistrates and councillors the Corporation or any such railway company. Provided that notwithstanding anything contained in the said Vale of Clyde Tramways Acts the railway

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A.D. 1905. — company and any other company or person running over or working the said portion of Tramway No. 15 and the tramways authorised by the said Vale of Clyde Tramways Acts may use mechanical power on those tramways and the Corporation may provide the power required for that purpose on such terms and conditions as may be agreed.

Continuing agreement with burgh of Clydebank.

92. Notwithstanding anything in this Order contained the agreement set forth in the Seventh Schedule to this Order and made between the Corporation and the provost magistrates and councillors of the burgh of Clydebank and subject to the provisions of the said agreement the Clydebank Burgh Tramways Order 1901 shall continue and remain in full force and effect to all intents and purposes as if the Act confirming this Order had not been passed.

Confirming agreement with burgh of Pollokshaws.

93. The agreement set forth in the Eighth Schedule to this Order and made between the Corporation and the provost magistrates and councillors of the burgh of Pollokshaws is hereby confirmed and made binding upon the parties thereto.

References to arbitration.

94. Any question or difference arising under this Order which is directed to be determined by arbitration shall unless it is otherwise in this Order specially provided be determined by an arbiter to be mutually agreed upon or failing agreement to be appointed by the Board of Trade on the application of either party and the decision of such arbiter shall be final.

General Tramway Acts.

95. Nothing in this Order contained shall be deemed or construed to exempt the Corporation or their lessees or the tramways from the provisions of any general Act relating to tramways now in force or which may hereafter pass during this or any future Session of Parliament or from any future revision or alteration under the authority of Parliament of the maximum rates of fares or charges by this Order authorised.

Expenses of Order.

96. The costs charges and expenses of and incidental to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Corporation and if paid out of borrowed money shall be repaid out of revenue within five years from the passing of the Act confirming this Order.

The SCHEDULES referred to in the foregoing Order.

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FIRST SCHEDULE.

(Referred to in the Section of this Order of which the marginal note is
"Tramways to vest in Corporation.")

I.—LIST of the TRAMWAYS (REVENUE LINES) already CONSTRUCTED and VESTED in the CORPORATION.

No.	Description of Tramways and Streets on which the same are laid down.	Length (Double Track) excluding Crossovers Sidings Junctions &c.		
		M.	F.	Yds.
1	New City Road from Saint George's Cross to Cambridge Street	0	2	11
2	Cambridge Street from New City Road to Sauchiehall Street	0	2	108
3	Sauchiehall Street from Cambridge Street to Renfield Street	0	1	91
4	Renfield Street from Sauchiehall Street to Saint Vincent Street	0	1	137
5	Renfield Street from Saint Vincent Street to Gordon Street	0	0	147
6	Union Street from Gordon Street to Argyle Street	0	1	33
7	Jamaica Street Jamaica Bridge and Bridge Street from Argyle Street to Nelson Street.	0	3	40
8	Eglinton Street from Nelson Street to Maxwell Road	0	5	87
9	Sauchiehall Street from Cambridge Street to Elmbank Street	0	2	142
10	Sauchiehall Street from Elmbank Street to Charing Cross	0	0	149
11	Sauchiehall Street from Charing Cross to Kelvingrove Street	0	4	54
12	Trongate from Candleriggs to Tron Steeple	0	0	63
13	Trongate (North) from Tron Steeple to High Street	0	0	123
14	Trongate (South) from Tron Steeple to Saltmarket	0	0	117
15	London Street Great Hamilton Street and Canning Street from Saltmarket to Clyde Street.	0	5	167
16	Canning Street and Bridgeton Cross from Clyde Street to junction of Dalmarnock Road.	0	1	5
17	Nelson Street Morrison Street and Paisley Road from Bridge Street to Paisley Road Toll.	0	6	26
18	Great Western Road from Saint George's Cross to Park Road	0	3	145
19	Great Western Road from Park Road to Byres Road	0	4	66
20	Great Western Road from Byres Road to Kirklee Road	0	1	158
21	Dumbarton Road from Derby Street to Sauchiehall Street	0	2	74
22	Dumbarton Road from Sauchiehall Street to Church Street	0	2	75
23	Dumbarton Road from Church Street to Whiteinch Burn	1	6	118

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No.	Description of Tramways and Streets on which the same are laid down.	Length (Double Track) excluding Crossovers Sidings Junctions &c.		
		M.	F.	Yds.
24	Sauchiehall Street from Kelvingrove Street to Derby Street -	0	0	80
25	Saint Vincent Street from Renfield Street to West Nile Street -	0	0	129
26	Saint Vincent Street and Saint Vincent Place from West Nile Street to Queen Street.	0	1	6
27	Main Street Anderston from Elderslie Street to Saint Vincent Street.	0	1	73
28	Dumbarton Road from Saint Vincent Street to Derby Street -	0	2	91
29	Argyle Street from Jamaica Street to Hope Street -	0	0	151
30	Argyle Street and Main Street Anderston from Hope Street to Elderslie Street.	0	5	95
31	Argyle Street from Jamaica Street to Glassford Street -	0	2	82
32	Trongate from Glassford Street to Candleriggs -	0	0	218
33	Queen Street George Street and Duke Street from Saint Vincent Place to Bellgrove Street.	1	1	32
34	Duke Street from Bellgrove Street to Cumbernauld Road -	0	3	43
35	Gallowgate from Kent Street to Bellgrove Street -	0	3	108
36	Gallowgate from Bellgrove Street to Camlachie Burn -	0	3	213
37	Pollokshaws Road from Victoria Road to Muirhouse Street -	0	1	11
38	Renfield Street from Sauchiehall Street to Cowcaddens -	0	1	17
39	Cowcaddens from Renfield Street to New City Road -	0	1	177
40	New City Road from Cowcaddens to Cambridge Street -	0	0	187
41	Gallowgate from High Street to Kent Street -	0	2	15
42	Great Eastern Road from Camlachie Burn to Camlachie Toll -	0	2	20
43	London Road from junction with Canning Street to Fielken Street.	0	3	76
44	Victoria Road from Pollokshaws Road to Queen's Drive -	0	5	85
45	Queen's Drive from Victoria Road to Langside Road -	0	0	193
46	Great Western Road from Kirklee Road to Hyndland Road -	0	2	208
47	Pollokshaws Road from Muirhouse Street to Shawlands Cross -	0	7	194
48	George Square South Frederick Street Ingram Street and Glassford Street from Queen Street to Argyle Street.	0	2	156
49	New City Road from Saint George's Cross to Gairbraid Street -	0	5	147
50	Crown Street Albert Bridge and Saltmarket from Rutherglen Road to Trongate (South).	0	3	218
51	Crown Street from Rutherglen Road to Cathcart Road -	0	3	198
52	Cathcart Road from Crown Street to Queen Mary Avenue -	0	6	73
53	Great Eastern Road from Camlachie Toll to Parkhead Cross -	0	3	63
54	Rutherglen Road from Crown Street to Braehead Street -	0	5	37
55	Norfolk Street and Govan Street from Bridge Street to Crown Street.	0	3	78
56	Gairbraid Street from New City Road to Maryhill Burgh Buildings.	1	0	86
57	Wyndford Street and Main Street Maryhill from Burgh Buildings to North British Railway Bridge at Maryhill.	0	4	164
58	Dalmarnock Road from Bridgeton Cross to Springfield Road -	0	4	204
59	Kilmarnock Road from Shawlands Cross to Grantly Street -	0	2	217
60	Possil Road from Possil Cross to Garscube Road at Raglan Street.	0	3	69
61	Garscube Road from Possil Road to Cowcaddens -	0	3	51
62	Cathcart Road from Queen's Drive to Queen Mary Avenue -	0	1	56
63	Elmbank Street from Sauchiehall Street to Saint Vincent Street.	0	1	202

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No.	Description of Tramways and Streets on which the same are laid down.	Length (Double Track) excluding Crossovers Sidings Junctions &c.		
		M.	F.	Yds.
64	Bothwell Street and Hope Street from Saint Vincent Street to Gordon Street.	0	3	62
65	Gordon Street from Hope Street to Renfield Street - - -	0	0	143
66	Saint George's Road from Saint George's Cross to Woodlands Road.	0	2	65
67	Saint George's Road from Woodlands Road to Charing Cross -	0	0	159
68	Park Road from Great Western Road to South Woodside Road	0	0	157
69	Eldon Street from Park Road to Woodlands Road - - -	0	1	27
70	Woodlands Road from South Woodside Road to Saint George's Road.	0	2	212
71	West Nile Street from Saint Vincent Street to Sauchiehall Street.	0	1	165
72	Sauchiehall Street and Parliamentary Road from West Nile Street to Castle Street.	0	6	55
73	Castle Street and Springburn Road from Parliamentary Road to New Keppochhill Road.	0	7	125
74	Springburn Road from New Keppochhill Road to Balgray Hill at Union Street.	0	2	209
75	Sauchiehall Street from Derby Street to Radnor Street - -	0	1	52
76	Radnor Street from Sauchiehall Street to Dumbarton Road -	0	0	102
77	Sauchiehall Street from Renfield Street to West Nile Street -	0	0	101
78	Main Street Bridgeton from Bridgeton Cross to Rutherglen Bridge.	0	4	0
79	Stockwell Street Victoria Bridge and Main Street Gorbals from Argyle Street to Gorbals Cross.	0	3	99
80	Main Street Gorbals from Gorbals Cross to Cathcart Street -	0	1	217
81	Cathcart Road from Main Street Gorbals to Crown Street -	0	2	118
82	Cathcart Road from Queen's Drive to Mount Florida - - -	0	1	195
83	Saint Vincent Street from Elmbank Street to Dumbarton Road	0	3	83
84	Possil Road from Possil Cross to Saracen Cross - - - -	0	3	40
85	Springburn Road from Balgray Hill to Union Street at Elmvale Street.	0	0	103
86	London Road from Fielden Street to Frazer Street - - -	0	0	141
87	Langside Road and Grange Road from Queen's Drive to Battlefield Road.	0	3	67
88	Pollokshaws Road from Main Street Gorbals to Victoria Road -	0	3	174
89	Maxwell Road and Kenmure Street from Eglinton Street to Albert Road.	0	4	57
90	Albert Road Albert Drive and Saint Andrew's Drive from Kenmure Street to Nithsdale Road.	0	5	199
91	High Street and Castle Street from Trongate (South) to Parliamentary Road.	0	6	174
92	Garscube Road from Possil Road to Gairbraid Street - - -	0	5	42
93	London Road from Frazer Street to Kinnear Road - - -	0	2	20
94	London Road from Kinnear Road to Springfield Road - - -	0	1	218
95	Dalmarnock Road from Springfield Road to north of Dalmarnock Bridge.	0	2	168
96	Paisley Road from Ibrox Railway Station to Halfway House -	0	7	191
97	Monkland Street from Parliamentary Road to Castle Street -	0	0	156
98	Sauchiehall Street from Radnor Street to Dumbarton Road -	0	1	3
99	Battlefield Road from Grange Road to Langside Depot - -	0	2	24
100	Gibson Street and Bank Street from Eldon Street to University Avenue.	0	2	193

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No.	Description of Tramways and Streets on which the same are laid down.	Length (Double Track) excluding Crossovers Sidings Junctions &c.		
		M.	F.	Yds.
101	South Woodside Road from Woodlands Road to Park Road -	0	1	27
102	West Nile Street and Cowcaddens from Sauchiehall Street to Renfield Street.	0	1	67
103	Hope Street from Gordon Street to Argyle Street -	0	1	65
104	Byres Road and Church Street from Great Western Road to Dumbarton Road.	0	5	46
105	Bellgrove Street Abercrombie Street and Clyde Street from Duke Street to Canning Street.	0	4	214
113	Westmuir Street Main Street Shettleston and Eastmuir Street from Parkhead Cross to Gartocher Road.	1	5	109
114	Great Eastern Road Tollcross Road and Main Street Tollcross from Parkhead Cross to Causewayside Street.	1	1	213
115	Cumbernauld Road from Duke Street to Alexandra Parade -	0	3	88
116	Alexandra Parade from Cumbernauld Road to Castle Street -	1	1	42
117	Great Western Road from Hyndland Road to Anniesland Cross	0	7	204
118	New Keppochhill Road from Possil Road to Springburn Road -	0	6	184
119	Renfrew Road from Linthouse Burn to Shieldhall Works Gate -	0	2	133
120	Dalmarnock Road and Farmloan Road from north of Dalmar- nock Bridge to Main Street Rutherglen.	0	6	6
121	Coatbridge Road from Gartocher Road to Barrachnie -	0	5	217
122	Dumbarton Road from Whiteinch Terminus to Scotstoun -	0	4	19
123	Pollokshaws Road and Maxwell Street from Shawlands Cross to Pollok Street.	0	5	34
124	Barrhead Road from Pollok Street to Carteraigs Street Pollok- shaws.	0	4	17
125	Rutherglen Road from Braehead Street to Shawfield Toll -	0	5	137
126	Rutherglen Road and Main Street Rutherglen from Shawfield Toll to Rutherglen Terminus.	0	7	124
127	Aikenhead Road from Cathcart Road to Govanhill Street -	0	3	55
128	Duke Street from Cumbernauld Road to Carntyne Road -	0	3	13
129	Holmlea Road from Battlefield Road to Cathcart Road -	0	1	136
130	Cathcart Road from Holmlea Road to Cemetery Gate New Cathcart.	0	7	4
131	Langside Road from Grange Road to Battle Place -	0	2	173
132	Dumbarton Road from Scotstoun Terminus to Yoker Terminus	1	3	139
133	Paisley Road from Halfway House to Crookston Terminus -	1	1	60
134	Renfrew Road from Shieldhall Works Gate to Renfrew Burgh Boundary.	1	3	154
135	Renfrew Road and High Street Renfrew from Renfrew { Single Boundary to Town Hall - - - - { Double	0	1	78
136	Bishopbriggs Road from Elmvale Street to Eastfield Street -	0	0	83
137	Bishopbriggs Road from Eastfield Street to Springfield Road Bishopbriggs.	1	3	131
138	Rutherglen Road from French Street to junction of Richmond Drive and Shawfield Road.	0	0	189
139	Shawfield Road from Richmond Drive to Shawfield Toll -	0	2	71
140	Cumbernauld Road from Alexandra Parade to Riddrie -	0	4	55
141	Clincart Road from McLennan Street to Florida Street -	0	0	80
142	Dumbarton Road from Yoker Terminus to Clydebank Burgh Boundary (Yoker Burn).	0	0	121
144	James Street Bridgeton King's Drive and King's Bridge from Dalmarnock Road to west end of bridge.	0	4	0
145	Govan Street from Crown Street to west end of King's Bridge -	0	4	25

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No.	Description of Tramways and Streets on which the same are laid down.	Length (Double Track) excluding Crossovers Sidings Junctions &c.
		M. F. Yds.
146	Paisley Road from Crookston Terminus to Paisley Boundary at Ralston House.	0 7 96
147	Glasgow Road from Paisley Boundary to Hawkhead Road Paisley.	0 3 139
148	Cambuslang Road from Union Place to Clydeford Road Cambuslang.	2 0 92
149	Duke Street from Carntyne Road to Parkhead Cross - -	0 4 97
150	Finnieston Quay and Finnieston Street from Stobeross Ferry to Dumbarton Road.	0 3 198
151	North Street from Saint Vincent Street to Sauchiehall Street -	0 1 188
152	Saint George's Road from Saint George's Cross to Garscube Road.	0 3 15
Total of revenue lines the { Single - -		0 1 78
property of the Corporation { Double - -		66 2 16

II.—LIST of the TRAMWAYS already CONSTRUCTED VESTED in the CORPORATION and presently USED solely as DEPÔT CONNECTIONS.

Description of Tramways and Streets on which the same are laid down.	Length excluding Crossovers Sidings Junctions &c.	
	Single Track.	Double Track.
	M. F. Yds.	M. F. Yds.
Coplaw Street and Jamieson Street from Pollokshaws Road to Cathcart Road.	0 3 144	—
Albert Road from Coplawhill Depôt Gate to Pollokshaws Road.	0 0 155	0 0 70
Albert Road from Coplawhill Depôt Gate to Kenmure Street.	0 1 139	0 0 49
Dalhousie Street from Dalhousie Depôt to New City Road.	0 0 99	—
Ruby Street from Dalmarnock Depôt to Dalmarnock Road.	0 2 42	—
Paton Street from Dennistoun Depôt to Duke Street -	0 1 9	—
Kelvinhaugh Street from Kelvinhaugh Depôt to Dumbarton Road.	0 1 108	—
Great Wellington Street from Kinning Park Depôt to Paisley Road.	0 1 93	0 1 13
Prospecthill Road from Cathcart Road to Battlefield Road.	0 2 69	—
Celtic Street from Maryhill Depôt to Main Street Maryhill.	0 0 110	—

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Description of Tramways and Streets on which the same are laid down.	Length excluding Crossovers Sidings Junctions &c.					
	Single Track.			Double Track.		
	M.	F.	Yds.	M.	F.	Yds.
Hayburn Street from Partick Depôt to Dumbarton Road.	0	0	123	—	—	—
Coustonholm Road from Pollokshaws Depôt to Kilmarnock Road.	—	—	—	0	1	193
Pleasance Street from Pollokshaws Depôt to Main Street Pollokshaws.	0	1	24	—	—	—
Pollok Street from Main Street Pollokshaws to Barrhead Road.	0	1	47	—	—	—
Hawthorn Street and Saracen Street from Possilpark Depôt to Saracen Cross.	0	2	191	0	0	52
Eastfield Street from Possilpark Depôt to Bishopbriggs Road.	0	4	97	0	1	57
Rochester Street from Whitevale Depôt to Gallowgate -	0	1	97	—	—	—
Total depôt connections - - -	3	3	7	0	4	219

III.—LIST of the TRAMWAYS already CONSTRUCTED and LEASED from the
PROVOST MAGISTRATES and COUNCILLORS of the BURGH of GOVAN.

No.	Description of Tramways and Streets on which the same are laid down.	Length excluding Crossovers Sidings Junctions &c.					
		Single Track.			Double Track.		
		M.	F.	Yds.	M.	F.	Yds.
106	Paisley Road from Paisley Road Toll to Lorne Street.	—	—	—	0	3	43
107	Paisley Road from Lorne Street to Ibrox Terminus.	—	—	—	0	4	196
108	Paisley Road from Ibrox Terminus to Govan Burgh Boundary.	—	—	—	0	2	79
109	Govan Road from Paisley Road Toll to Lorne Square at Harvey Street.	—	—	—	0	5	62
110	Govan Road from Harvey Street to Greenhead Drive.	—	—	—	2	0	66
111	Lorne Street from Paisley Road to Govan Road -	—	—	—	0	1	12
112	Renfrew Road from Greenhead Drive to Govan Burgh Boundary.	—	—	—	0	1	160
	<i>Constructed and used solely as depôt connections.</i>						
	Greenhaugh Street from Govan Depôt to Govan Road.	0	0	185	—	—	—
	Total - - - - -	0	0	185	4	2	178

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IV.—LIST of TRAMWAYS already CONSTRUCTED liable to be PURCHASED A.D. 1905.
by the PROVOST MAGISTRATES and COUNCILLORS of the BURGH of
CLYDEBANK.

No.	Description of Tramways and Streets on which the same are laid down.	Length (Double Track) excluding Crossovers Sidings Junctions &c.
143	Dumbarton Road from Yoker Burn to Clydebank East Railway Station.	M. F. Yds. 0 6 42
153	Dumbarton Road from Clydebank East Railway Station to Park Road.	1 2 14
Total - - - - -		2 0 56

V.—LIST of the TRAMWAYS AUTHORISED but not CONSTRUCTED at the
passing of the Act confirming this Order.

Description of Tramways and Streets on which the same are to be laid down.	Length excluding Crossovers Sidings Junctions &c.	
	Single Track.	Double Track.
Aikenhead Road from Govanhill Street to Polmadie Street.	M. F. Yds. —	M. F. Yds. 0 1 9
*Dumbarton Road from Park Road Clydebank to Clydebank Western Boundary Duntocher Burn.	0 0 50	0 2 200
*Kilbowie Road from Dumbarton Road to Bridge of N.B. Helensburgh Line (approximately).	0 1 145	0 1 132
*Junction of Dumbarton Road and Kilbowie Road -	—	0 0 37
Barrhead Road from Pollokshaws West to Speirsbridge	—	1 5 127
Kilmarnock Road from Grantly Street to Giffnock -	—	2 1 95
Speirsbridge to Giffnock (being that portion of the Busby and Paisley Road joining the two last-mentioned lines).	—	0 7 105
Total - - - - -	0 1 195	5 4 45

* These tramways are liable to be purchased by the provost magistrates and councillors of the burgh of Clydebank.

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A.D. 1905.

ABSTRACT of the TRAMWAYS.

	Single.	Double.
	M. F. Yds.	M. F. Yds.
I.—Tramways constructed and vested in the Corporation.	0 1 78	66 2 16
II.—Tramways constructed and vested in the Corporation (depôt connections).	3 3 7	0 4 219
III.—Tramways constructed and leased from the provost magistrates and councillors of the burgh of Govan including dépôt connections.	0 0 185	4 2 178
IV.—Tramways constructed and liable to be purchased by the provost magistrates and councillors of the burgh of Clydebank.	—	2 0 56
V.—Tramways authorised but not yet constructed -	0 1 195	5 4 45
Total - - - - -	3 7 25	78 6 74

SECOND SCHEDULE.

(Referred to in the section of this Order of which the marginal note is
 “ Owners may be required to sell parts only of houses or buildings.”)

HOUSES or other BUILDINGS of which parts only may be taken.

Parish.	Nos. on deposited Plans.
Eastwood - - - - -	10 11 12 13.
Catcart - - - - -	11 12.

THIRD SCHEDULE.

(Referred to in the sections of this Order of which the marginal notes are "Borrowing on mortgage" and "Sinking Fund.")

1. Act or Order under which Borrowing Powers obtained.	Borrowing Powers.			5. Period for Repayment of Money borrowed.	6. Sinking Fund applied as at 31st May 1904 in reduction of Amount borrowed.	7. Parliamentary Expenses written off as at 31st May 1904.	8. Amount of Outstanding Debt as at 31st May 1904.	Capital Expenditure	
	2. Amount Authorised.	3. Amount Borrowed as at 31st May 1904.	4. Amount not yet exercised but still subsisting.					9. On Tramway Undertaking as at 31st May 1904.	10. Still to be expended on authorised and intended Tramways and Works (estimated).
Glasgow Corporation Tramways Act 1872	£ 200,000			Two per cent. interest equal to a period of 31 years.					
Glasgow Corporation Tramways Act 1875	100,000								
Glasgow Corporation Tramways Act 1879	100,000								
Glasgow Corporation Tramways Act 1885	100,000								
Glasgow Corporation Act 1891	200,000	£ 2,246,114 1 5*	£ 453,885 18 7*		£ 402,355 6 5	£ 12,864 14 2	£ 1,830,894 0 10	£ 2,699,775 13 9*	£ 135,275 0 0
Glasgow Corporation Act 1893	200,000								
Glasgow Corporation (Tramways Libraries &c.) Act 1899	500,000								
Glasgow Corporation (Tramways and General) Order 1901.	1,000,000								
Glasgow Corporation Tramways Order 1903	200,000								
Glasgow Corporation (Tramways &c.) Order 1904	100,000								
Totals	2,700,000	2,246,114 1 5	453,885 18 7		402,355 6 5	12,864 14 2	1,830,894 0 10		
		£22,700,000			£22,246,114 1 5				
Glasgow Corporation (Tramways Consolidation) Order 1905.	400,000								284,049 6 3
	£3,100,000							2,699,775 13 9*	400,224 6 3
								£3,100,000	

* Of the sum of 2,699,775l. 13s. 9d. there has been borrowed from the public 2,246,114l. 1s. 5d. and there has been met temporarily out of accumulated funds of the Tramways Department 453,661l. 12s. 4d.

A.D. 1905.

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A.D. 1905.

FOURTH SCHEDULE.

(Referred to in the section of this Order of which the marginal note is "Repeal of Acts.")

Title of Act.	Extent of Repeal.
The Glasgow Street Tramways Act 1870 - -	The whole Act.
The Glasgow Corporation Tramways Act 1872 -	The whole Act.
The Glasgow Corporation Tramways Act 1875 -	The whole Act.
The Glasgow Corporation Tramways Act 1879 -	The whole Act.
The Glasgow Corporation Act 1884 - - -	Section 2 so far as it relates to the incorporation of the Tramways Act 1870 and sections 14 to 43.
The Glasgow Corporation Tramways Act 1885 -	The whole Act.
The Glasgow Corporation Act 1891 - - -	The whole Act except section 19.
The Glasgow Police (Further Powers) Act 1892	Section 36.
The Glasgow Corporation Act 1893 - - -	Section 2 so far as it relates to the incorporation of the Tramways Act 1870 and sections 4 to 48.
The Glasgow Bridge &c. Act 1894 - - -	Section 5 so far as it authorises the construction of tramways and sections 29 to 32.
The Glasgow Corporation (Improvements and General Powers) Act 1897.	Sections 22 to 30.
The Glasgow Corporation (Tramways Libraries &c.) Act 1899.	Sections 6 to 28.
The Glasgow Corporation (Tramways and General) Order 1901.	Sections 6 to 20 and the schedule.
The Glasgow Corporation (Water and General) Order 1902.	Section 33.
The Glasgow Corporation Tramways Order 1903	Sections 2 3 and 5 to 18 and the schedule.
The Glasgow Corporation (Tramways &c.) Order 1904.	Section 3 so far as it relates to the incorporation of the Tramways Act 1870 and sections 4 and 6 to 16.

FIFTH SCHEDULE.

(Sections of the Glasgow and Ibrox Tramway Act 1877 referred to in the section of this Order of which the marginal note is "Vesting certain tramways in burgh of Govan.")

- Section 2. (Certain provisions of general Acts herein named incorporated.)
- Section 4. (Alterations on Tramways Act as applied to this Act in certain instances.)
- Section 7. (Mode of formation of tramways.)
- Section 8. (Tramways to be kept on level with surface of road.)
- Section 9. (Only one tramway to be laid on road in certain cases.)

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- Section 10. (Company to make passing places on requisition of road or local authority.) A.D. 1905.
- Section 11. (Power to make additional crossings passing places &c. where necessary.)
- Section 12. (Temporary tramways.)
- Section 13. (Penalty for not maintaining rails and roads.)
- Section 14. (Sewer authority to have access to sewers.)
- Section 16. (Protecting Glasgow water and gas pipes.)
- Section 17. (Water commissioners or corporation not to be liable for damage arising from accidents.)
- Section 18. (Water commissioners or corporation may lay additional pipes.)
- Section 19. (Water commissioners or corporation not liable for damage arising from alterations of mains &c.)
- Section 20. (Further provisions as to interference with pipes.)
- Section 21. (Reserving certain provisions of 33 & 34 Vict. c. 78.)
- Section 22. (Company to pay expenses of water commissioners and corporation and their officers.)
- Section 23. (Inspection by Board of Trade.)
- Section 24. (Construction and propelling of carriages &c.)
- Section 25. (Tramways to be part of road.)

SIXTH SCHEDULE.

(Referred to in the section of this Order of which the marginal note is
"Continuing lease with burgh of Govan.")

LEASE BETWEEN THE COMMISSIONERS OF THE BURGH OF GOVAN
AND THE CORPORATION OF THE CITY OF GLASGOW DATED
1ST AND 12TH NOVEMBER 1900.

It is contracted and agreed between the commissioners of the burgh of Govan incorporated under the Burgh Police (Scotland) Act 1892 heritable proprietors of the tramways and other subjects after mentioned (hereinafter called "the commissioners") of the first part and the Corporation of the city of Glasgow (hereinafter called "the Corporation") of the second part in manner following that is to say The commissioners have subject to any powers or rights which the commissioners of Kinning Park may have under the Tramways Act 1870 or the Govan Burgh Tramways Act 1893 and subject also to the consent of the Board of Trade being given so far as it may be necessary to these presents or to this lease being sanctioned by Parliament in any Bill to be promoted by the Corporation and in consideration of the payments and other prestations after specified hereby set and in tack and assedation let to the Corporation the sole right to use for the purposes of

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Schedule.

[Ch. cxxviii.] *Glasgow Corporation (Tramways Consolidation) Order Confirmation Act, 1905.* [5 EDW. 7.]

A.D. 1905. the Glasgow and Ibrox Tramway Act 1877 and the Vale of Clyde Tramway Acts 1871 1876 and 1888 the Govan Burgh (Tramways) Act 1893 and the Glasgow Corporation (Improvements and General Powers) Act 1897 and subject to such running powers as may be competently exercised over the said Vale of Clyde Tramways (Govan Section) carriages with flange wheels or other wheels specially adapted to run on a grooved rail on the whole tramways authorised by the said Acts and owned by the commissioners extending from Parkhouse Toll to Linthouse on the Renfrew Road and from Parkhouse Toll to the Ibrox Railway Bridge on the Paisley Road and the connecting line in Lorne Square and Lorne Street Together with all and whole the lands and premises consisting of stables offices and hall situated in Greenhaugh Street and Robert Street Govan said lands being particularly described in feu contract between the trustees of the late John Hinshelwood and the Vale of Clyde Tramways Company dated twenty-fourth twenty-ninth thirtieth and thirty-first October eighteen hundred and seventy-nine and recorded in the Division of the General Register of Sasines applicable to the county of the Barony and Regality of Glasgow second May eighteen hundred and eighty-four and that for the space of thirty-five years from and after the tenth day of July nineteen hundred and that on the following conditions and provisions:—

First The Corporation shall half-yearly in equal portions on thirtieth June and thirty-first December the first payment being due on thirty-first December nineteen hundred and the last on thirtieth June nineteen hundred and thirty-five and being held to cover the period to tenth July thereafter pay to the commissioners a sum in name of interest calculated at the average rate of interest payable from time to time by the commissioners together with the expenses of borrowing (but in no case exceeding the rate of three pounds ten shillings sterling per centum per annum) upon the sum of seventy-one thousand one hundred and ninety-one pounds being the total money borrowed and expended by the commissioners for the purposes of the tramways declaring that the amount on which such half-yearly sums in name of interest shall be payable shall not be affected by any payment made to the commissioners through the operation of the sinking fund hereinafter provided for And the Corporation shall also pay the annual sum of twenty-five pounds sterling which the commissioners are bound to pay to the commissioners of the burgh of Kinning Park in terms of the third article of the Minute of Agreement scheduled to the Govan Burgh (Tramways) Act 1893.

Second The Corporation shall also pay half-yearly on thirtieth June and thirty-first December as aforesaid the last payment being held to cover the period to tenth July nineteen hundred and thirty-five to the commissioners the sum of three pounds five shillings and three pence half-penny per centum per annum on the said sum of seventy-one thousand one hundred and ninety-one pounds expended by the commissioners as aforesaid on capital account and the said payments shall be made in name of a sinking fund to be applied towards the reduction or extinction of the amount expended by the commissioners on capital account as aforesaid and the payments made

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by the Corporation in terms of this article together with the payments made in terms of the preceding article shall be and be held to be the annual rental paid by the Corporation to the commissioners in respect of the lease of the said tramways. A.D. 1905.

Third The Corporation shall pay annually during the currency of this lease and so free and relieve the commissioners of the payment of the annual feu-duty amounting to the sum of two hundred and fifty-eight pounds seventeen shillings and ninepence sterling payable in respect of the lands in Greenhaugh Street and Robert Street hereby let payable in terms of the aforesaid feu-contract.

Fourth The Corporation may sublet the said lands and buildings thereon and may alter or take down the said buildings and erect other buildings but so as not to decrease the existing value thereof and in either event they shall maintain in good order and condition the buildings from time to time upon the said lands and at the termination of the lease they shall leave on the said lands buildings equal in value (ordinary tear and wear excepted) to those now on the said lands.

Fifth The Corporation shall at their own expense carry out the work of converting the existing tramway system from horse haulage to overhead electric traction including the renewal of the permanent way the laying of ducts and cables the erection of overhead works &c. and shall maintain and so far as necessary from time to time renew the tramways and the roadway between and within the tramways and for twenty-one inches beyond the outside of the rails during this lease and that to the satisfaction of the burgh surveyor of Govan for the time being and the Corporation shall hand over the said tramway including the cables overhead electric construction and all other fixed equipments in connection with said tramways (which are hereby declared to be during the currency of this lease the property of the commissioners) at the end of the lease in fair working order Declaring that the Corporation as regards the maintenance and renewal of the tramways shall in every respect be bound to satisfy and fulfil and free and relieve the commissioners of the burden of implementing all conditions and obligations laid upon the commissioners as owners of the tramways by the various Acts of Parliament affecting the same In the event of any difference of opinion as to the maintenance and renewals necessary the same shall be settled by the arbiter after-mentioned Provided that if it is arranged between the parties that the centre way be increased from three feet to four feet the Corporation shall in that event maintain and renew the roadway for only eighteen inches beyond the outside of the rails.

Sixth The Corporation shall in equipping the tramways in Govan Road from Linthouse to Summertown Road for electric traction so arrange the overhead construction as to permit of the same being raised to give a clear headway of twenty-three feet in the centre of the street above the level of the tramway rails and the Corporation undertake to raise the wires to that extent if and when required on thirty-six hours' notice being given to them

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A.D. 1905. — for the purpose of safely permitting to be conveyed along said road any boiler (without dome) or large piece of machinery or other similar load which could not be taken along said road without coming in contact with the wires when fixed at the ordinary standard height of twenty-one feet six inches it being understood that the persons conveying such loads shall do so on as low a bogie as it is possible to construct and that such persons shall undertake that the boiler or machinery will be brought to the point named at an hour to be fixed by the Corporation so as to admit of the whole operation of raising the wires passing the load and restoring the wires to their proper position being carried out during one night while the cars are not running say between 12.30 and 5 a.m.

Seventh The powers of the commissioners under the Tramways Act 1870 the Govan Burgh Act 1878 and the Burgh Police (Scotland) Act 1892 and also under the Acts to which they have acquired right as aforesaid (videlicet) The Vale of Clyde Tramways Act 1871 the Vale of Clyde Tramways Act 1876 the Vale of Clyde Tramways Act 1888 and the Glasgow and Ibrox Tramway Act 1877 and also under the Govan Burgh (Tramways) Act 1893 in relation to the making of byelaws and regulations or in relation to the licensing of drivers conductors and other persons and in all other respects shall not be affected by this lease except in so far as specially provided herein.

Eighth The Corporation shall have the sole right of user of the tramways for purposes of and under the conditions of working contained in the several Acts relating thereto during the currency of this lease subject to all the conditions and provisions contained in the clauses of these Acts and also of demanding and taking the tolls and charges authorised by the said Acts providing always that the fares tolls and charges to be levied by the Corporation on the tramways hereby leased shall be at the same rate as those charged generally within the city.

Ninth The carriages to be used by the Corporation on the tramways shall be maintained to the satisfaction of the commissioners or any person to be appointed by them for that purpose and the Corporation shall work and carry on the business of the tramways hereby leased as one system with their own tramways in Glasgow and its neighbourhood and shall act fairly and impartially towards the community and for the convenience of the inhabitants.

Tenth The Corporation shall be entitled to all the rights powers and privileges except in so far as at variance with the present lease conferred on lessees by the aforesaid Acts and they shall be subject to all the liabilities thereby imposed.

Eleventh All assignees whether legal voluntary or conventional and possessors for behoof of creditors and sub-tenants (except as otherwise herein provided) unless where they shall have the special consent of the commissioners in writing are expressly excluded Provided always that in the event of such sublet the Corporation shall not be relieved of their obligations to the commissioners contained in this lease.

Twelfth The commissioners agree to the construction by the Corporation of such branch lines as may be required to any depôts or other buildings which they may require to use in connection with the carrying out of their obligations to run cars under this lease. A.D. 1905.

Thirteenth Should the Corporation at any time fail to provide a satisfactory service of cars upon the tramways leased to them it shall be lawful for the commissioners to provide for the deficiencies of the Corporation who shall be bound to pay the whole expenses incurred by the commissioners in so doing.

Fourteenth Should the Corporation at any time fail to make the foresaid stipulated payments or any of them or any part thereof the commissioners shall be entitled in addition to the ordinary legal remedies on a certificate by the burgh treasurer that such payments or parts thereof have not been made for a period of six weeks after the same have become due forthwith and at their own hand and without the necessity of any judicial authority to seize and sell by public sale or private bargain so many of the horses and carriages or other plant and materials employed in the working of the said tramways or other property belonging to the Corporation as may be necessary to meet the said payments And the commissioners shall not be liable for damages in the exercise of the said power unless it be proved that the same has been exercised maliciously and without probable cause.

Fifteenth Should the commissioners of the burgh of Kinning Park at any time during the currency of this lease resolve to acquire such portions of the tramways as lie within their jurisdiction under the powers of the Govan Burgh (Tramways) Act 1893 the price paid by them to the Govan commissioners shall be deducted from the capital sum upon which the Corporation are bound under clauses one and two of this lease to pay interest and sinking fund to the commissioners and these payments shall be correspondingly reduced.

Sixteenth The Corporation shall pay all the owners' assessments upon the said tramways from and after the date of their commencing to work the said tramways by electricity.

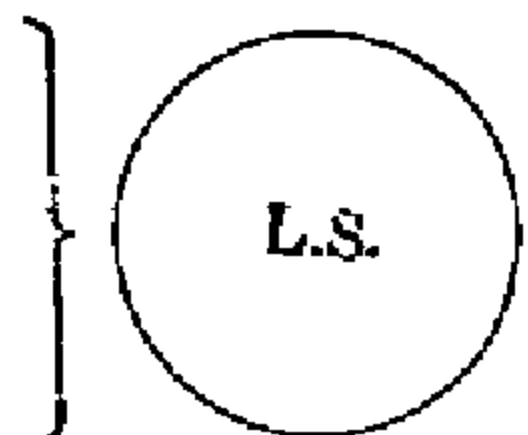
Seventeenth Except as otherwise provided any questions arising under this lease between the parties hereto are hereby submitted to John Jackson Coats writer Glasgow whom failing to James Moir Esquire professor of conveyancing in the University of Glasgow whom failing to Matthew Pollock Fraser advocate Edinburgh whose decision shall be final and binding on all parties.

Eighteenth The parties hereby bind and oblige themselves respectively to implement and fulfil the one party to the other the present lease and the whole clauses and obligations therein contained under the penalty of one thousand pounds sterling to be paid to the party performing or willing to perform over and above performance And both parties consent to the registration hereof and of any decrees arbitral interim or final to be pronounced hereunder for preservation and execution In witness whereof these presents printed on this and the two preceding pages are executed as follows

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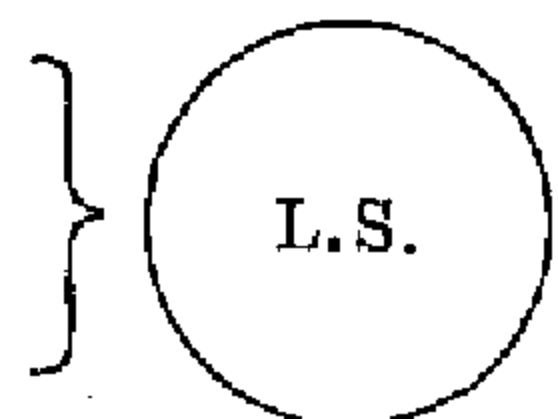
A.D. 1905. viz. They are sealed with the seal of the Corporation and subscribed by Walter Paton and John Lumsden Oatts two members of the Corporation and by Sir James David Marwick town clerk of said city on behalf of and as specially authorised by the Corporation in council assembled at Glasgow on the first day of November one thousand nine hundred years before these witnesses William Johnstone writer and John Hercus clerk both in the town clerk's office Glasgow and are subscribed by James Kirkwood John Marr and Robert Anderson Wightman three of the commissioners of the burgh of Govan and by Alexander Macdonald clerk to the said commissioners (the common seal of the said burgh being duly adhibited) at Govan the twelfth day of the month and year last mentioned before these witnesses James Adamson Houston depute town clerk Govan and Hamilton Marr clerk in the office of the town clerk of Govan.

JAMES KIRKWOOD Commr.
 JOHN MARR Commr.
 R. A. WIGHTMAN Commr.
 A. MACDONALD Clerk.



J. A. HOUSTON Witness.
 H. MARR Witness.

WALTER PATON.
 J. LUMSDEN OATTS.
 J. D. MARWICK T.C.



W. JOHNSTONE Witness.
 JOHN HERCUS Witness.

SEVENTH SCHEDULE.

(Referred to in the section of this Order of which the marginal note is
 "Continuing agreement with burgh of Clydebank.")

MINUTE OF AGREEMENT between the CORPORATION OF THE CITY OF GLASGOW (hereinafter called "Glasgow Corporation") of the first part and the PROVOST MAGISTRATES AND COUNCIL OF THE BURGH OF CLYDEBANK (hereinafter called "Clydebank Council") of the second part.

It is agreed between the parties hereto as follows (viz.) :—

1. The powers contained in the Clydebank Burgh Tramways Order 1901 (hereinafter called "the Clydebank Order") to construct and work tramways within the burgh of Clydebank (hereinafter called "the burgh") shall be transferred to and be exerciseable by Glasgow Corporation in the same way and to the like effect as if the tramways described in that Order had been authorised by the Glasgow Corporation Tramways Order 1901 Glasgow Corporation shall relieve the Clydebank Council of all obligations incumbent

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upon them under that Order but sections 34 and 35 and 49 to 66 of the Clydebank Order relating to finances borrowing &c. shall not apply to Glasgow Corporation. A.D. 1905.

2. It shall be in the sole option of Glasgow Corporation whether they shall construct and work Tramway No. 5 described in said Order.

3. Glasgow Corporation shall on the 15th day of May 1903 repay to the Clydebank Town Council the expense incurred by them in obtaining and passing the Clydebank Order with interest thereon at $3\frac{1}{2}$ per cent. per annum.

4. The Clydebank Council shall within six months after the expiry of forty-two years from the 15th May 1903 and within six months after the expiration of every subsequent period of seven years have the option to take over subject to the provisions of the Tramways Act 1870 the tramway undertaking in Clydebank authorised by the Clydebank Order and all lands buildings works lines bridges electric equipment plant &c. suitable to and used for the purposes of the undertaking within the burgh at a valuation in terms of section 43 of the Tramways Act 1870 but exclusive of any allowance for goodwill.

5. The roadway between the rails and for eighteen inches outside of the rails shall be paved and maintained to the satisfaction of Clydebank Council. The existing material may be used so far as available.

6. All fares tolls and charges levied by Glasgow Corporation within the burgh shall be at the same rate as those charged generally within the city.

7. Glasgow Corporation shall construct Tramways Nos. 1 to 4 described in the Clydebank Order within the time specified in that Order viz. before 26th July 1906 and the Clydebank Council will give facilities for the construction and maintenance of these tramways.

8. The Glasgow Corporation shall have power to provide and place appliances for or in connection with electric or mechanical traction in or under the roads or streets within the burgh but always in such a manner as will not interfere with the free and safe passage of ordinary traffic on such roads and the Glasgow Corporation shall also if necessary have power to place poles section boxes and appliances for carrying wires at the side of those roads or streets or on the footpath thereof but the position design and form of construction of such appliances poles and boxes shall be subject to the approval of the Clydebank Council and in the event of difference of opinion with reference thereto the same shall be determined by an arbiter to be nominated by the Board of Trade. The Glasgow Corporation shall immediately on the completion of their operations which they shall be bound to carry out with all speed restore to the satisfaction of the Clydebank Council such portions of the footpaths with corresponding kerb and channel as may have been disturbed by their operations.

9. The poles which shall be the same as those used generally within the city shall be subject to the approval of the Clydebank Council who will have

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A.D. 1905. power to use such poles for electric lighting purposes subject to the provisions contained in subsection (15) of section 14 of the Glasgow Corporation (Tramways and General) Order 1901.

10. The service of cars throughout the burgh of Clydebank shall not at any time be less than one car in each direction every twenty minutes between the hours of 8 a.m. and 11 p.m.

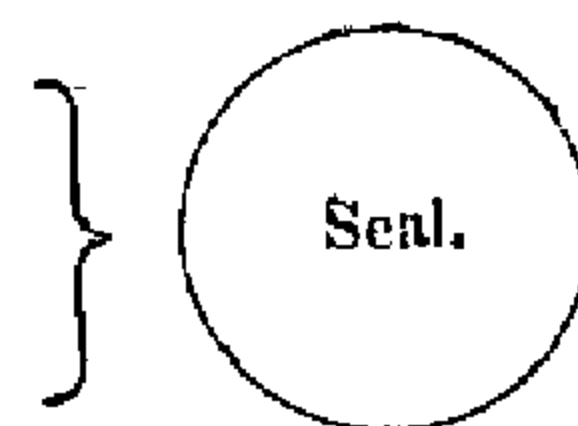
11. Glasgow Corporation shall pay all landlords' and tenants' taxes upon the said tramways in the burgh.

12. This agreement is subject to the sanction of Parliament and the Glasgow Corporation hereby undertake within one year from the date hereof to make application to Parliament for the necessary powers to give effect to this agreement and to carry on said application to its termination and the Clydebank Council undertake at the expense of the Glasgow Corporation to support said application.

13. In the event of differences arising between Glasgow Corporation and Clydebank Council these shall be referred to an arbiter to be nominated by the Board of Trade.

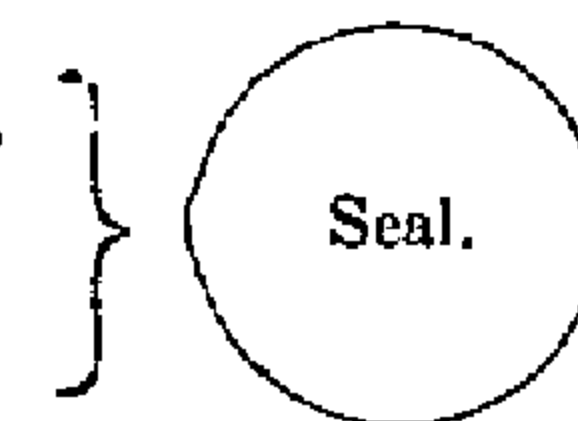
In witness whereof these presents duly stamped are executed in duplicate as follows (viz.) They are sealed with the seal of the burgh of Clydebank and subscribed by Alexander Stewart provost John Taylor magistrate and John Hepburn town clerk all of the said burgh on behalf of and as specially authorised by the said provost magistrates and council of said burgh at a special meeting of the town council thereof held at Clydebank on the nineteenth day of September nineteen hundred and two years before these witnesses Thomas Calder clerk to the said John Hepburn and Robert Dunlop Brown clerk in the office of the sanitary inspector Clydebank and are sealed with the seal of the Corporation of the city of Glasgow and subscribed by Alexander M'Cutcheon and James Henderson Martin two members of the said Corporation and by Sir James David Marwick town clerk of Glasgow on behalf of and as specially authorised by the said Corporation at Glasgow on the second day of October year last mentioned before these witnesses David Elder and John Hercus both clerks in the town clerk's office Glasgow.

ALEX. M'CUTCHEON.
J. H. MARTIN.
J. D. MARWICK Town Clerk.



DAVID ELDER Witness.
JOHN HERCUS Witness.

ALEXANDER STEWART Provost.
JOHN TAYLOR Magistrate.
JOHN HEPBURN Town Clerk.



THOMAS CALDER Witness.
ROBERT D. BROWN Witness.

EIGHTH SCHEDULE.

A.D. 1905.

(Referred to in the section of this Order of which the marginal note is
"Confirming agreement with burgh of Pollokshaws.")

MINUTE OF AGREEMENT between the CORPORATION OF THE CITY OF GLASGOW (hereinafter called "the first party") and the PROVOST MAGISTRATES AND COUNCILLORS OF THE BURGH OF POLLOKSHAWS (hereinafter called "the second party").

WHEREAS the first party have petitioned the Secretary for Scotland in terms of the Private Legislation Procedure (Scotland) Act 1899 for a Provisional Order intituled "The Glasgow Corporation (Tramways Consolidation) Order 1905" (hereinafter referred to as "the Order") to consolidate with amendments the Glasgow Corporation Tramways Acts 1870 to 1904 and inter alia to make certain alterations in the level of Coustonholm Road within the burgh of Pollokshaws :

And whereas the second party have petitioned against the Order being made or allowed to pass into law as it now stands :

And whereas the parties have been in negotiation for the adjustment of their differences :

And whereas it has now been arranged between the parties that the second party should consent to the Order being passed into law on the parties hereto agreeing and undertaking as after expressed :

Therefore the parties hereto agree and bind and oblige themselves as follows (viz.) :—

First The first party agree and undertake to have the Order amended in terms of and conform to the amended print docketted and signed by the clerks to the parties as relative hereto and not to make any other alterations on the Order which may affect the second party without first obtaining their approval thereof.

Second In the event of the Order passing into law the first party bind themselves to make the alterations in the level of Coustonholm Road strictly in accordance with the provisions of the Order.

Third In the event aforesaid and on the second party widening Pleasance Street to the reasonable satisfaction of the first party the first party agree and undertake to give a reasonably frequent service of cars from Glasgow to the Town Buildings situated at the corner of Pollock Street and Main Street in Pollokshaws.

[Ch. cxxviii.] *Glasgow Corporation (Tramways [5 EDW. 7.] Consolidation) Order Confirmation Act, 1905.*

A.D. 1905.

Fourth In the event of the Order passing into law the second party shall sell and the first party shall purchase the subjects in the burgh of Pollokshaws known as the Green Lane Bleaching Green extending to 2,083 square yards or thereby imperial measure lying on the north or north-west side of the River Cart and adjoining the tramway depôt belonging to the first party.

Fifth It is agreed that the price to be paid for the said subjects shall be 700*l.* sterling and that entry shall be given on payment of the price and on delivery of a valid disposition of said subjects which the second party shall be bound to grant in favour of the first party but the warrandice to be given by the second party shall be from fact and deed allenarly.

Sixth The first party agree and undertake to pay the cost of the said disposition.

Seventh The first party agree and undertake at their own expense to have this agreement confirmed by the Order subject to such alterations as may be made thereon during the progress of the Order but if any material alterations be made thereon it shall be competent to either party to withdraw therefrom.

Eighth The first party shall subject to taxation bear the expenses of the second party of and incident to the execution and carrying into effect of this agreement.

Ninth The second party agree and undertake to withdraw the petition lodged by them against the Order and also if required by the first party to support the application for the Order and the Bill which will be introduced into Parliament to confirm it provided the second party shall be fully indemnified by the first party for all legal or other expenses which they may incur in supporting the Order and the Bill.

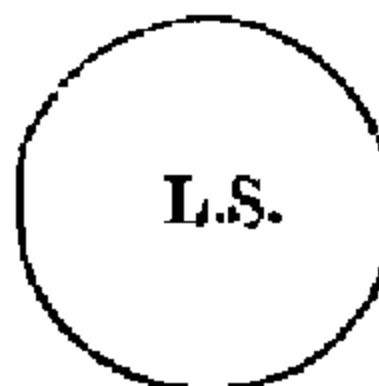
Lastly Any difference arising between the parties hereto as to the meaning of these presents or the due and proper implement thereof shall be settled by an arbiter to be mutually chosen or failing agreement to be nominated by the sheriff of the county of Lanark on the application of either party.

In witness whereof these presents printed on this and the preceding page are executed in duplicate as follows (*viz.*) They are sealed with the common seal of the burgh of barony of Pollokshaws and subscribed by Robert Wilson provost and Robert Bryce Walker town clerk of the said burgh on behalf of the provost magistrates and councillors of the said burgh at a meeting of the town council thereof held at Pollokshaws on the twenty-seventh day of April nineteen hundred and five years before these witnesses Duncan Burns burgh surveyor Pollokshaws and Andrew McCallum journalist 35 Harriet Street Pollokshaws and are sealed with the seal of the Corporation of the city of Glasgow and subscribed by Hugh Alexander and Henry Steven two members of the said Corporation and by John Bowers town clerk of Glasgow on behalf of the said Corporation

[5 EDW. 7.] *Glasgow Corporation (Tramways* [Ch. cxxviii.]
Consolidation) Order Confirmation Act, 1905.

at Glasgow on the third day of May and year last mentioned before these A.D. 1905.
witnesses Alexander Walker depute town clerk Glasgow and John
Hercus clerk in the town clerk's office Glasgow.

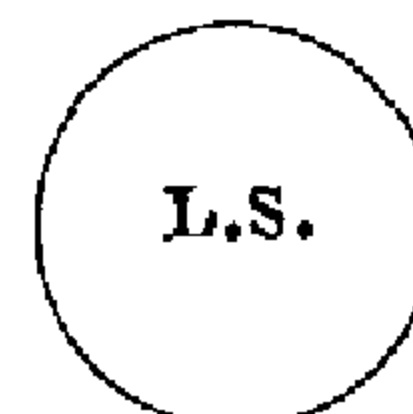
HUGH ALEXANDER.
HENRY STEVEN.
JOHN BOWERS Town Clerk.

}  L.S.

ALEX. WALKER Witness.

JOHN HERCUS Witness.

ROBERT WILSON Provost.
ROBERT BRYCE WALKER Clerk. }

}  L.S.

DUNCAN BURNS Witness.

ANDREW M'CALLUM Witness.

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